SOLICITATION, OFFER, AND AWARD *(Construction, Alteration, or Repair)*	1. SOLICITATION NO. N4008024R2401	2. TYPE OF SOLICITATION ☐ SEALED BID (IFB) ☒ NEGOTIATED *(RFP)*	3. DATE ISSUED 30-Sep-2024	PAGE OF PAGES 1 OF 69

IMPORTANT - The "offer" section on the reverse must be fully completed by offeror.

4. CONTRACT NO.	5. REQUISITION/PURCHASE REQUEST NO.	6. PROJECT NO.

7. ISSUED BY CODE N40080	8. ADDRESS OFFER TO *(If Other Than Item 7)* CODE
NAVAL FACILITIES ENGINEERING SYS COMMAND 1314 HARWOOD STREET SE WASHINGTON DC 20374	**See Item 7**
TEL: (202) 685-3192 FAX:	TEL: FAX:

9. FOR INFORMATION CALL:	A. NAME	B. TELEPHONE NO. *(Include area code)* *(NO COLLECT CALLS)*
	DANIEL RUSSELL	202-685-8086

SOLICITATION

NOTE: In sealed bid solicitations "offer" and "offeror" mean "bid" and "bidder".

10. THE GOVERNMENT REQUIRES PERFORMANCE OF THE WORK DESCRIBED IN THESE DOCUMENTS *(Title, identifying no., date):*

INDEFINITE-DELIVERY, INDEFINITE-QUANTITY (IDIQ) MULTIPLE AWARD CONSTRUCTION CONTRACT (MACC) SMALL BUSINESS (SB) SET ASIDE FOR ROOFING SERVICES FOR FACILITIES PRIMARILY IN THE NAVFAC WASHINGTON, AREA OF RESPONSIBILITY (AOR)

This procurement is being solicited as a Total Small Business set-aside.

Proposal Documents

ATTACHMENT A – PPI LOG TEMPLATE
ATTACHMENT B – CONSTRUCTION AND DESIGN EXPERIENCE PROJECT DATA SHEET
ATTACHMENT C – PRICE PROPOSAL FORM (DEMONSTRATION PROJECT)
ATTACHMENT D – PAST PERFORMANCE QUESTIONNAIRE (PPQ) FORM

SF 1442 Attachments and Exhibits:
ATTACHMENT E – USU Roof Garden Design Submission - Final Specifications (SPECS DEMONSTRATION PROJECT)
ATTACHMENT F – USU Roof Garden Design Submission - Final Draw ings (DWGS DEMONSTRATION PROJECT)

11. The Contractor shall begin performance w ithin 15 calendar days and complete it w ithin ________ calendar days after receiving ☒ aw ard, ☐ notice to proceed. This performance period is ☒ mandatory, ☐ negotiable. *(See* 52.211-10 *.)*

12 A. THE CONTRACTOR MUST FURNISH ANY REQUIRED PERFORMANCE AND PAYMENT BONDS? *(If "YES," indicate within how many calendar days after award in Item 12B.)* ☒ YES ☐ NO	12B. CALENDAR DAYS 10

13. ADDITIONAL SOLICITATION REQUIREMENTS:

A. Sealed offers in original and 1 copies to perform the w ork required are due at the place specified in Item 8 by 02:00 PM *(hour)* local time 30 Oct 2024 *(date).* If this is a sealed bid solicitation, offers must be publicly opened at that time. Sealed envelopes containing offers shall be marked to show the offeror's name and address, the solicitation number, and the date and time offers are due.

B. An offer guarantee ☒ is, ☐ is not required.

C. All offers are subject to the (1) w ork requirements, and (2) other provisions and clauses incorporated in the solicitation in full text or by reference.

D. Offers providing less than 120 calendar days for Government acceptance after the date offers are due w ill not be considered and w ill be rejected.

SOLICITATION, OFFER, AND AWARD (Continued)

(Construction, Alteration, or Repair)

OFFER ***(Must be fully completed by offeror)***

14. NAME AND ADDRESS OF OFFEROR *(Include ZIP Code)*	15. TELEPHONE NO. *(Include area code)*
	16. REMITTANCE ADDRESS *(Include only if different than Item 14)* **See Item 14**
CODE / FACILITY CODE	

17. The offeror agrees to perform the work required at the prices specified below in strict accordance with the terms of this solicitation, if this offer is accepted by the Government in writing within ________ calendar days after the date offers are due. *(Insert any number equal to or greater than the minimum requirements stated in Item 13D. Failure to insert any number means the offeror accepts the minimum in Item 13D.)*

AMOUNTS	SEE SCHEDULE OF PRICES

18. The offeror agrees to furnish any required performance and payment bonds.

19. ACKNOWLEDGMENT OF AMENDMENTS

(The offeror acknowledges receipt of amendments to the solicitation -- give number and date of each)

AMENDMENT NO.										
DATE										

20A. NAME AND TITLE OF PERSON AUTHORIZED TO SIGN OFFER *(Type or print)*	20B. SIGNATURE	20C. OFFER DATE

AWARD ***(To be completed by Government)***

21. ITEMS ACCEPTED:

22. AMOUNT	23. ACCOUNTING AND APPROPRIATION DATA

24. SUBMIT INVOICES TO ADDRESS SHOWN IN *(4 copies unless otherwise specified)*	**ITEM**	25. OTHER THAN FULL AND OPEN COMPETITION PURSUANT TO ☐ 10 U.S.C. 2304(c) ☐ 41 U.S.C. 253(c)
26. ADMINISTERED BY CODE		27. PAYMENT WILL BE MADE BY: CODE

CONTRACTING OFFICER WILL COMPLETE ITEM 28 OR 29 AS APPLICABLE

☐ 28. NEGOTIATED AGREEMENT *(Contractor is required to sign this document and return _______ copies to issuing office.)* Contractor agrees to furnish and deliver all items or perform all work, requisitions identified on this form and any continuation sheets for the consideration stated in this contract. The rights and obligations of the parties to this contract shall be governed by (a) this contract award, (b) the solicitation, and (c) the clauses, representations, certifications, and specifications or incorporated by reference in or attached to this contract.

☐ 29. AWARD *(Contractor is not required to sign this document.)* Your offer on this solicitation, is hereby accepted as to the items listed. This award consummates the contract, which consists of (a) the Government solicitation and your offer, and (b) this contract award. No further contractual document is necessary.

30A. NAME AND TITLE OF CONTRACTOR OR PERSON AUTHORIZED TO SIGN *(Type or print)*		31A. NAME OF CONTRACTING OFFICER *(Type or print)* TEL: EMAIL:
30B. SIGNATURE	30C. DATE	31B. UNITED STATES OF AMERICA BY
		31C. AWARD DATE

Section 00 10 00 - Solicitation

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0001		249,000,000	Project		
	SB Roofing MACC Base FFP INDEFINITE-DELIVERY, INDEFINITE-QUANTITY (IDIQ) MULTIPLE AWARD CONSTRUCTION CONTRACT ROOFING (MACC) SMALL BUSINESS (SB) SET ASIDE FOR FACILITIES PRIMARILY IN THE NAVFAC WASHINGTON, AREA OF RESPONSIBILITY (AOR) FOB: Destination				
				NET AMT	

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0002 OPTION	SB Roofing Option Period 1 FFP Roofing MACC Option Period 1: Three calendar years duration FOB: Destination				
				NET AMT	

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0003 OPTION	SB Roofing Option Period 2 FFP Roofing MACC: Option Period 2: Three calendar years duration FOB: Destination				
				NET AMT	

DELIVERY INFORMATION

CLIN	DELIVERY DATE	QUANTITY	SHIP TO ADDRESS	DODAAC / CAGE
0001	N/A	N/A	N/A	N/A
0002	N/A	N/A	N/A	N/A
0003	N/A	N/A	N/A	N/A

Section 00 21 16 - Instructions to Proposers

INSTRUCTIONS TO OFFERORS
TABLE OF CONTENTS

1. GENERAL

1.1 NOTICE TO OFFERORS

1.1.1 THIS SOLICITATION IS BEING ISSUED AS A TOTAL SMALL BUSINESS SETASIDE.
THE NAICS CODE FOR THIS PROCUREMENT IS 238160 AND THE SIZE STANDARD IS $19M.

1.2 GENERAL OVERVIEW OF PROCUREMENT PROCESS

1.2.1 This solicitation is formatted as a Request for Proposal (RFP) in accordance with the requirements designated by sections of the FAR 15.203. This method permits evaluation of proposals based on price competition, technical merit and other factors; permits impartial and comprehensive evaluation of offerors' proposals; permits discussions if necessary; and ensures selection of the source(s) whose performance provides the best value to the Government. This acquisition will be solicited as a competitively negotiated procurement as a total small business set-aside.

1.2.2 OFFERORS ARE ADVISED THAT AWARD MAY BE MADE WITHOUT DISCUSSION OR ANY CONTACT CONCERNING THE PROPOSALS RECEIVED. Therefore, proposals should be submitted initially on the most favorable price and technical terms. Offerors should not assume that they will be contacted or afforded an opportunity to qualify, discuss, or revise their proposals. However, the Government reserves the right to clarify certain aspects of proposals or conduct discussions providing an opportunity for the offeror to revise its proposal.

1.3 GENERAL OVERVIEW OF CONTRACT

1.3.1 This acquisition will result in the award of a Design-Build (DB)/Design- Bid-Build (DBB), Indefinite-Delivery/Indefinite Quantity (IDIQ), Multiple Award Construction Contract (MACC) for various roofing projects within the NAVFAC Washington Area of Responsibility (AOR). The Government intends to award approximately five (5) contracts resulting from this solicitation to the responsible Offerors whose proposals represent the best values after evaluation in accordance with the factors and their relative importance, unless more or less than five (5) is determined to be the best value to the government by the Source Selection Authority.

1.3.2 Construction projects to be performed under this MACC will require the ability to manage multiple task orders concurrently across the NAVFAC Washington AOR. This MACC will encompass a variety of projects that include, but are not limited to the New Construction, Demolition, Repair, Alteration, and/or renovation of roofing or roofing materials (and may include minor general construction scope such as architectural, structural, mechanical or electrical items). Task Orders may include, but not limited to, removal and reinstallation of existing roof mounted equipment and enclosures, “cut-out” demolition and installation of framing and curbing for new, and/or replaced equipment, “patching-in” around new equipment, secure and disconnect electrical, gas, refrigeration, steam and condensate and other process services in conjunction with “remove and reinstall” or “install new” equipment during accomplishment roofing work, roofing demolition and debris handling and disposal, installation of new roofing, scheduled repair of existing roofs, emergency roof repair, repair or replacement of roof drains, connector piping, drain pans, gutters and leaders, parapet wall treatments, flashing, cap treatments, repair or replacement of roof decking materials, repair, replacement or installation of permanent fall protection, access ladders, access and smoke hatches, roof expansion joints, and roof work which potentially involves asbestos containing material and/or lead containing material handling, abatement and disposal, as well as interior dust and debris containment and protection in accordance with applicable federal, state, and local safety and health regulations. Types of facilities may include, but not limited to, administrative, industrial, maintenance, warehouses, communications, personnel support, recreation, lodging, medical, training, ranges, airfields, hangars, etc.

1.3.3 The completion date for the IDIQ contracts is eight (8) years from the date of contract award with a two-year base period, and two (2) three-year option periods, not to exceed 96 months. The total 8-year (base and 2 options) estimated construction cost for all contracts is not to exceed $249,000,000 for the life of the contract. Projects for the MACC have an estimated construction cost between $150,000 and $15,000,000; however, smaller and larger dollar value projects may be considered at the discretion of the Contracting Officer.

1.3.4 The Government guarantees an award amount of $5,000 to successful offeror for the life of the contract.

1.3.5 After award of the initial contracts and “demonstration” project, the successful IDIQ contractors will compete for task orders based on best value, using the tradeoff process or lowest price technically acceptable (to include lowest price). Only the successful IDIQ contractors will compete for future task orders.

2 GENERAL OVERVIEW OF THE DEMONSTRATION PROJECT

2.1 Due to funding constraints, this acquisition will be solicited with one demonstration project. Pricing of the demonstration project will be used to evaluate the reasonableness of proposed pricing in order to make best value determinations Design-Build (DB) E-USU-76 Roof Garden, NSA Bethesda, MD. The project consists of removing existing roof, add a topping slope, add access from the interior and put a green roof on top. It is also to provide a design for a roof garden / patio design at the second floor of bldg. 76E. Design includes architectural layout following option A of study including but not limiting to green area, architectural gravel, seats, Arbor, tables , chairs, architectural lighting approved by USUHS. Also included is Structural strengthening, Landscape Architecture, Mechanical, Electrical and Plumbing to accommodate installation of the roof garden and support function of the new layout and incidental related work. All work shall be completed not later than 180 calendar days after the date of award. This project was selected as the demonstration project from existing requirements to best represent the nature of potential work under the contract. The Government reserves the right to award the demonstration project at the time of the basic contract award or before the proposal expiration period, should funds become available. If the demonstration project is not awarded with the basic award, the guaranteed minimum will be awarded.

*Solicitation Section 01 00 00 will include the General Requirements for the demonstration project.

Pursuant to FAR 52.232-18, Availability of Funds, the Government's obligation under this solicitation, or any task order or contract that might result from the solicitation is entirely subject to, and contingent upon, the availability of appropriated funds. Should the Government be unable to award the demonstration project, the Government guarantees an award in the amount of $5,000.00 to each successful offeror upon award of the Multiple Award Construction Contracts. This minimum guarantee is over the full term of the contract, including option years. No legal liability on the part of the Government shall arise until funds are made available to the Contracting Officer and a task order or contract is awarded by the Contracting Officer.

Any offeror proposing on this solicitation does so at its own cost and with the full knowledge that a task order for the demonstration project, might not result from this solicitation.

3. BASIS FOR AWARD

3.1 The Government reserves the right to eliminate from consideration for award any or all offers at any time prior to award of the contract(s); to negotiate with offerors in the competitive range; and to award the contract(s) to the offeror(s) submitting the proposal(s) determined to represent the best value—the proposal(s) most advantageous to the Government, cost/price and other factors considered.

3.2 The Government intends to evaluate proposals and award a contract without discussions with offerors (except clarifications as described in FAR 15.306(a)). The Government reserves the right to conduct discussions if the Contracting Officer later determines them to be necessary. In addition, if the Contracting Officer determines that the number of proposals that would otherwise be in the competitive range exceeds the number at which an efficient competition can be conducted, the Contracting Officer may limit the number of proposals in the competitive range to the greatest number that will permit an efficient competition among the most highly rated proposals.

3.3 The tradeoff process is selected as appropriate for this acquisition. The Government considers it to be in its best interest to allow consideration of award to other than the lowest priced offeror or other than the highest technically rated offeror.

3.4 As stated in the solicitation, all technical factors when combined are of equal importance to the performance confidence assessment (past performance) rating; and all technical factors and the performance confidence assessment (past performance) rating, when combined are approximately equal to price.

3.5 Any proposal found to have a deficiency in meeting the stated solicitation requirements or performance objectives will be considered ineligible for award, unless the deficiency is corrected through discussions. An Unacceptable rating in any of the non-cost/price factors and/or sub-factors will result in an overall rating of "Unacceptable" for the non-cost/price factors, unless corrected through discussions. Proposals may be found to have either a significant weakness or multiple weaknesses that impact either the individual factor rating or the overall rating for the proposal. The evaluation report must document the evaluation board's assessment of the identified weakness(s) and the associated risk to successful contract performance resulting from the weakness(s). This assessment must provide the rationale for proceeding to award without discussions.

C. EVALUATION FACTORS FOR AWARD

1. The solicitation requires the evaluation of price and the following non-cost/price factors.

PHASE I:

Factor 1 – Technical Approach
Factor 2 – Corporate Experience
Factor 3 – Management Approach

PHASE II:
Factor 4 – Safety
Factor 5 – Past Performance
Price

Offerors shall submit a Phase I proposal in response to the solicitation. Offeror proposals will be evaluated against the stated RFP Criteria. Those Offerors identified to be in the Competitive Range will be invited to submit a Phase II proposal. Those Phase I Offerors who receive an Unacceptable in any factor will be considered ineligible for award, unless the significant weaknesses and/or deficiencies are easily correctable through discussions and the Contracting Officer determines discussions to be in the best interest of the Government; or unless otherwise determined to be included within the competitive range. Award will be made to the responsible Offeror(s) whose proposal(s) represent the best value to the Government, with Price and all Non-Price factors considered. Information for Phase II proposals will not be considered during Phase I. Likewise, Phase I proposals information shall not be considered with Phase II proposals.

2. The relative order of importance of the non-cost/price evaluation factors the technical factors *(Factors 2, 3 and 4)* are of equal importance to each other and, when combined, are equal in importance to the past performance evaluation/performance confidence assessment factor *(Factor 5)*. Technical Approach *(Factor 1)* will be rated as either Acceptable or Unacceptable. If an Offeror is rated Unacceptable for Factor 1, such offeror will be considered ineligible for award, regardless of its rating under any of the other factors. When the proposal is evaluated as a whole, the technical factors and past performance/performance confidence assessment factor combined (i.e., the non-cost/price evaluation factors) are approximately equal to price.

The importance of price will increase if the Offerors' non-cost/price proposals are considered essentially equal in terms of overall quality, or if price is so high as to significantly diminish the value of a non-cost/price proposal's superiority to the Government. Award will be made to the responsible Offeror(s) whose offer conforms to the solicitation and represents the best value to the Government, price and non-price factors considered.

3. Basis of Evaluation and Submittal Requirements for Each Factor.

(a) Price:

(1) Solicitation Submittal Requirements:

Price shall be submitted on the Price Proposal Form included in the solicitation. The offeror shall submit one (1) electronic copy via PIEE. Also, price information included in the non-price/technical proposal will not be considered. Likewise, non-price/technical information included in the price proposal will not be considered.

All submissions shall include the following documents. Failure to submit items (i) through (vi) shall result in your proposal being considered non-responsive and thus ineligible for award.

(i) Executed SF1442. Offeror shall insert its company name and address in Block #14, telephone number in Block #15, acknowledge all amendments in Block #19 (if applicable), name and title of person authorized to sign in Block #20A, signature in Block #20B, and offer date in Block #20C of the SF1442. In addition, Offeror shall provide its UEI Number, CAGE code, and Federal Tax ID number with its proposal. Note: UEI must be provided for each JV or mentor-protégé partner.

(ii) Completed Price Proposal Form for the demonstration Project.

(iii) Bid Bond (SF-24). Offeror shall submit a bid bond (SF-24) in the amount of 20% of total project bid price for the demonstration project or $3M, whichever amount is less. The bid bond shall be in the name of the offeror identified on the SF1442.

(iv) In addition, the offeror shall provide a letter from its bonding company confirming that it has a single award bonding capacity of at least $15,000,000 and an aggregate bonding capacity to award multiple projects in the minimum amount of at least $50,000,000.

(v) SAM registration. Offeror shall ensure current registration on the SAM Website, www.sam.gov, including Annual Representations and Certifications are complete and updated for this procurement. If a Representation or Certification required by Section 00 45 00 of the RFP is not provided in SAM, include the representation or certification in your price proposal.

(vi) VETS-4212 registration. Offeror shall ensure a current VETS-4212 report has been submitted to the Department of Labor (DOL) website, http://www.dol.gov/vets/vets4212.htm, if the Offeror is required to submit. An email confirmation of submission can be requested and received by the Offeror from the DOL website and submitted in the price proposal. If the Offeror is not required to submit a report to VETS-4212, include a brief statement and justification explaining why the Offeror is not required to submit a report. Visit the VETS-4212 website for details concerning if your company is required to submit a VETS-4212 report and to request an email confirmation of submission.

*NOTE: A small business joint venture offeror must submit, with its offer, the representation required in paragraph (c) of FAR solicitation provision 52.212-3, offeror Representations and Certifications-Commercial Products and Commercial Services, and paragraph (c) of FAR solicitation provision 52.219-1, Small Business Program Representations, in accordance with 52.204-8(d) and 52.212-3(b) for the following categories:

(A) Small business;
(B) Service-disabled veteran-owned small business;
(C) Women-owned small business (WOSB) under the WOSB Program;
(D) Economically disadvantaged women-owned small business under the WOSB Program; or
(E) Historically underutilized business zone small business.

The offeror is required to submit a complete Price Proposal Form that includes completion of all contract line items numbers (CLINs). Pricing information is not required to be completed under Section 00 10 00 – Solicitation Contract Form in SF 1442. All required proposal documents shall be submitted in accordance with FAR 15.208.

ADDITIONAL INFORMATION TO BE SUBMITTED WITH PRICE PROPOSAL PACKAGE:

RESPONSIBILITY DETERMINATION INFORMATION - In order to be eligible for award, the offeror must be determined responsible in accordance with FAR Part 9, specifically 9.104-1, General Standards. In a separate Tab, the offeror shall provide the following information in the price proposal package:

1. One (1) Signed Bank Reference demonstrating adequate financial resources. If offeror's firm has a line of credit – provide information on how many figures offeror can borrow against the line of credit (i.e. medium 6 figures – exact line of credit is not required).

2. The offeror shall provide the latest three complete fiscal year financial statements for the prime contractor, certified by an independent accounting firm, if practicable, or signed by an authorized officer of the organization. Submit evidence of availability of working/operating capital, which will be used for the performance of the resultant contract. For Joint Venture arrangements, submit the latest three complete fiscal year financial statements for each company in the Joint Venture and discuss the financial responsibilities among the companies. The Government may also utilize Dun & Bradstreet reports to evaluate the financial capacity of the offeror. Offerors are not required to submit financial information as detailed in the price submission instructions via PIEE. Offerors may send proprietary financial statements to daniel.russell.civ@us.navy.mil with a clearly marked subject line: "N40080-24-R-2401 [OFFEROR NAME] FINANCIAL STATEMENTS"

3. Description of offeror's facilities and equipment.

4. Other offeror's work presently under contract.

Although required to be submitted with offeror's price proposal, this information will not be evaluated as part of the price proposal. This information forms the basis of your firm's responsibility determination should your firm be considered for award. Proposal packages from unsuccessful offerors will not be returned to the offeror but shall be destroyed by the Contracting Officer. No certificate of destruction will be issued.

(2) Basis of Evaluation: The Government will evaluate price based on the total price for the seed project. Total price consists of the basic requirements and all option items. The Government intends to evaluate all options and has included the provision FAR 52.217-5, Evaluation of Options (JUL 1990) in the solicitation. In accordance with FAR 52.217-5, evaluation of options will not obligate the Government to exercise the option(s). Analysis will be performed by one or more of the following techniques to ensure a fair and reasonable price:

(i) Comparison of proposed prices received in response to the RFP.

(ii) Comparison of proposed prices with the IGCE.

(iii) Comparison of proposed prices with available historical information.

(iv) Comparison of market survey results.

(b) Non-cost/price Factors:

(i) Solicitation Submittal Requirements: The offeror shall submit one (1) electronic copy marked "Original" via PIEE. Price information included in the non-price/technical proposal will not be considered. Likewise, non-price/technical information included in the price proposal will not be considered. All submissions shall include the following:

- Include a cover page with Solicitation Number, Solicitation Title, Prime Contractor Name, Address, Phone Number, Unique Entity ID Number, Cage Code, Tax ID Number, Point of Contact, Title, phone number, and email address. 8 ½ x 11 paper, Times New Roman, 10-point font. Note: If proposing as a Joint-Venture (JV), please submit the POC, UEI, and CAGE Code for each JV partner.

Refer to individual factors for page limitations. Pages that exceed indicated page limitations shall not be evaluated.

(1) <u>Factor 1 – Technical Approach</u>

(i) Solicitation Submittal Requirements:

The composition and management of the firms proposed as the design-build (DB) team for this contract will be evaluated in this factor.

FAR Part 9.6 defines Contractor team arrangements. Contractor team arrangement means an arrangement in which -- (1) Two or more companies form a partnership or joint venture to act as a potential prime Contractor; or (2) A potential prime Contractor agrees with one or more other companies to have them act as its subcontractors under a specified Government contract or acquisition program.

The Offeror shall submit the following information:

(1) Provide a simple organizational chart that clearly identifies the lines of authority between the proposed primary construction firm(s) and primary design firm(s) for this contract. Include a brief description of the role and responsibility of each entity not to exceed (1) page.

Note: If the experience of an entity will be claimed in Factor 2, that entity must be named in Factor 1.

(2) In addition, the Offeror shall submit a signed copy of a joint venture agreement, partnership agreement, teaming agreement, approved mentor protégé agreement (MPA), or letter of commitment signed by each member of the Contractor team identified above (e.g., joint venture member, partner, team member, subcontractor, parent company, subsidiary, or other affiliated company, etc). Letters of commitment for the Designer of Record shall be addressed from the Designer of Record to the Offeror. The Designer of Record's letter of commitment shall be signed by the Designer of Record's signing authority.

(ii) Basis of Evaluation:

The assessment of the Offeror's technical approach will be used as a means to review the organizational structure and roles and responsibilities proposed by the Offeror.

This factor will be rated on an Acceptable or Unacceptable basis.

(2) <u>Factor 2 – Corporate Experience</u>

(i) Solicitation Submittal Requirements:

The Offeror shall submit the following information:

a) Construction Experience:

Submit a maximum of five (5) relevant construction projects for the Offeror that best demonstrates your experience on relevant projects that are similar in size, scope, and complexity to the RFP. For purposes of this evaluation, a relevant project is further defined as:

Size: 1) A final construction cost of at least $2,000,000. At least one relevant project, however, shall have a final construction cost of at least $15,000,000 and
2) A total roofing area of 10,000 SF. At least one relevant project shall be at least 50,000 SF.

Scope: Submitted projects must demonstrate experience with at least one of the following:

- New Installation of Roofing System;
- Repair of Roofing System or Major Roofing Elements; or
- Replacement of Roofing System;

Complexity: Submitted projects must collectively demonstrate experience with each of the following:
- Low-slope roof coverings;
- Steep-slope roof coverings;
-

Note: Major Roofing Systems may include but are not limited to low-slope roof coverings such as Built-up Roofs (BUR), Mesh Reinforced Elastomeric Coatings, Modified Bitumen, and Single-Ply; and steep-slope roof coverings such as metal panels (standing seam), shingles, slate, tiles.

Submitted projects shall collectively demonstrate relevant experience with the following:

- At least one project demonstrating experience with each of the following elements of size, scope/complexity:
    - New Installation of Roofing System; or;
    - Repair of Roofing System or Major Roofing Elements;
    - Replacement of Roofing System;
    - Low-slope roof coverings;
    - Steel slope roof coverings;

  If a single project encompasses experience of more than one scope listed above, Offerors shall clearly delineate the portion of the job pertaining to each scope on the project data sheet. Note: Vague narrative details are likely insufficient.

- At least one design-build project
- At least one design-bid-build project
- At least one project with a final construction cost of at least $15,000,000 or greater
- At least one project with a total roofing area of at least 50,000 SF

Recency: Projects submitted for the Offeror shall be completed within the past seven (7) years of the date of issuance of this RFP.

For the purposes of this solicitation, the definition of a "complete" project is 'The stage of construction of a building or facility, at which its owner can occupy for the purpose it was constructed,' or the owner has accepted the constructed building or facility.

A project is defined as roofing systems or major roofing elements for a construction project performed under a single task order or contract.

In the context of this solicitation "Construction" is: The erection, installation or assembly of a new real property facility requiring multiple-disciplines (e.g. structural, roofing, mechanical and civil) which includes architectural and or engineering efforts necessary to construct a facility and/or the addition, expansion, extension, alteration, conversion or replacement of a real property facility requiring multiple disciplines which includes architectural and or engineering efforts necessary to construct a facility.

For multiple award and indefinite-delivery/indefinite-quantity type contracts, the contract as a whole shall not be submitted as a project; instead Offerors shall submit the work completed under a task order as a project.

The attached Construction & Design Experience Project Data Sheet (Attachment A) is MANDATORY and SHALL be used to submit project information. If the same project is being used to demonstrate construction and design experience, submit separate Project Data Sheets for construction and design. Except as specifically requested, the Government will not consider information submitted in addition to this form. Individual blocks on this form may be expanded; however, total length for each project data sheet shall not exceed three (3) pages.

For all submitted projects, the description of the project shall clearly describe the scope of work performed and the relevancy to the project requirements of this RFP (i.e., unique features, area, construction methods). In addition, the description shall also address any sustainable features for the project, including specific descriptions of those features. Provide applicable documentation on projects that were validated and/or certified through a Sustainable Third-Party Certification program (This documentation does not count toward attachment A 3-page limit)

If the Offeror is a Joint Venture (JV), relevant project experience should be submitted for projects completed by the Joint Venture entity. If the Joint Venture does not have shared experience, projects may be submitted for the Joint Venture members. If a project was performed by a JV, and not all partners from that JV are on the JV proposed for this contract, the offeror shall clearly demonstrate what portion of the work was performed by the JV member offering on this contract and shall not include work performed by the JV as a whole. The JV member proposed for this contract shall specifically address field work performed by that JV member including field staffing and direct field work oversight. The JV member proposed for this contract shall also address home office management performed by that JV member including the number/percentage of employees provided for the overall contract by the JV members as well as the overall percentage of work performed by the JV member. The Offeror shall also submit a SIGNED copy of the Joint Venture agreement indicating the proposed participation of each Joint Venture member. Offerors are still limited to a total of five (5) projects combined. Offerors who fail to submit experience for all JV member partners may be considered less favorably.

If an Offeror is utilizing experience information of affiliates/subsidiaries/parent/LLC/LTD member companies (name is not exactly as stated on the SF1442), the proposal shall clearly demonstrate that the affiliate/subsidiary/parent firm will have meaningful involvement in the performance of the contract. The proposal shall state specific commitments of technical resources (e.g. personnel, equipment) that the affiliate/subsidiary/parent/LLC/LTD member companies commit to the performance of this contract. In particular, the proposal will clearly state the specific commitments of resources of the affiliate/subsidiary/parent/LLC/LTD member companies in terms of the work it will either self-perform or manage on behalf of the Offeror in the performance of the contract. Vague commitments to support are likely insufficient; rather, they must demonstrate intent/manner of actual performance on the contract action being solicited.

Note: The Government will not consider any project submitted for Factor 2 if it was performed by a firm other than the Offeror and there is no supporting partnership agreement, teaming agreement, or letter of commitment demonstrating the necessary level of meaningful involvement described in Factor 1.

The Offeror may not utilize experience of a subcontractor to demonstrate construction experience other than as prescribed in 13 CFR 125.11. The Prime Offeror may submit experience where the prime offeror served as part of a joint venture or served as a first-tier subcontractor under Factor 2, Construction Experience.

(1) Design Experience:

Both design-build and design-bid-build projects may be contemplated under this MACC. Therefore, the Offeror is required to identify the design firm (Architect/Engineering firm) to be utilized as Designer of Record (DOR) on anticipated future projects. Provide the full name of the firm, address, UEI number, and CAGE code. The designated firm will be required to be utilized as the DOR on future design-build task orders under the resulting MACC, unless a substitution is approved by the Contracting Officer for the proposed task order. The Offeror must provide supporting documentation (such as a signed joint venture agreement, partnership agreement, teaming agreement, or letter of commitment on the proposed DOR's letterhead) demonstrating agreement by the proposed design firm to perform as DOR for the duration of this MACC under Factor 1.

Submit a maximum of five (5) relevant design projects for the design team that best demonstrates design experience on relevant projects that are similar in size, scope, and complexity to the RFP performed by the DOR. The Government will only review five (5) projects for design. Any projects submitted in excess of five (5) for Design Experience will not be considered.

For purposes of this evaluation, a relevant project is further defined as:

Size: 1) A final construction cost of at least $2,000,000. At least one relevant project, however, shall have a final construction cost of at least $15,000,000 and
2) A total roofing area of 10,000 SF. At least one relevant project shall be at least 50,000 SF.

Scope: Submitted projects must demonstrate experience with at least one of the following:

- New Installation of Roofing System;
- Repair of Roofing System or Major Roofing Elements; or
- Replacement of Roofing System;

Complexity: Submitted projects must collectively demonstrate experience with each of the following:
- Low-slope roof coverings;
- Steep-slope roof coverings;

Note: Major Roofing Systems may include but are not limited to low-slope roof coverings such as Built-up Roofs (BUR), Mesh Reinforced Elastomeric Coatings, Modified Bitumen, and Single-Ply; and steep-slope roof coverings such as metal panels (standing seam), shingles, slate, tiles.

Submitted projects shall collectively demonstrate relevant experience with the following:

- Experience with each of the following elements of scope/complexity:
- At least one project demonstrating experience with each of the following elements of size, scope/complexity:
  - New Installation of Roofing System; or;
  - Repair of Roofing System or Major Roofing Elements;
  - Replacement of Roofing System;
  - Low-slope roof coverings;
  - Steel slope roof coverings;

If a single project encompasses experience of more than one scope listed above, Offerors shall clearly delineate the portion of the job pertaining to each scope on the project data sheet. Note: Vague narrative details are likely insufficient.

- At least one design-build project
- At least one project with a final construction cost of at least $15,000,000 or greater
- At least one project with a total roofing area of at least 50,000 SF

Recency: A project submitted under design experience will meet the recency requirement if (a) the construction effort was completed within seven (7) years immediately preceding the RFP issuance date, regardless of the design completion date, OR (b) the construction effort is ongoing, but the design completion date was reached within the seven (7) years immediately preceding the RFP issuance date. Each relevant completion date shall be clearly stated on the Construction & Design Experience Project Data Sheet.

A project is defined as a complete design effort performed under a single task order or contract/subcontract. For multiple award and indefinite delivery/indefinite quantity type contracts, the contract as a whole shall not be submitted as a project; rather Offerors shall submit the work performed under a task order as a project.

The attached Construction & Design Experience Project Data Sheet (Attachment A) is MANDATORY and SHALL be used to submit project information. If the same project is being used to demonstrate construction and design experience, submit separate Project Data Sheets for construction and design. Except as specifically requested, the Government will not consider information submitted in addition to this form. Individual blocks on this form may be expanded; however, total length for each project data sheet shall not exceed three (3) single-sided pages. The design completion date shall CLEARLY be stated for submitted design projects. Failure to include the design completion date may result in a project being considered NOT RELEVANT for that project.

For all submitted projects, the description of the project shall clearly describe the scope of work performed and the relevancy to the project requirements of this RFP (i.e., unique features, area, construction methods). In addition, the description should also address any sustainable features for the project, including specific descriptions of those features. Provide applicable documentation on projects that were validated and/or certified through a Sustainable Third Party Certification program. (This does not count towards the attachment A 3-page limit)

For all submitted projects, the description of the project shall clearly describe the scope of work performed and the relevancy to the project requirements of this RFP (i.e., unique features, area, construction methods). In addition, the description should also address any sustainable features for the project, including specific descriptions of those features. Provide applicable documentation on projects that were validated and/or certified through a Sustainable Third Party Certification program.

The proposal shall state specific commitments of technical resources (e.g. personnel, equipment) that the affiliate/subsidiary/parent/LLC/LTD member companies commit to the performance of this contract. In particular, the proposal will clearly state the specific commitments of resources of the affiliate/subsidiary/parent/LLC/LTD member that will be located at the worksites and company offices in the city/area of the project. The proposal shall also describe specific roles of the affiliate/subsidiary/ parent/LLC/LTD member companies in terms of the work it will either self-perform or manage on behalf of the Offeror in performance of the contract. Failure to submit this information may result in a lower rating.

The Offeror must provide a supporting joint venture agreement, partnership agreement, teaming agreement, or letter of commitment and an explanation of the involvement for the design subcontractor. Offerors proposing multiple design firms should submit relevant project experience for all design firms. Failure to do so may result in a lower rating. Offerors are still limited to a total of five (5) design submission projects combined.

(ii) Basis of Evaluation:

The basis of evaluation will include the Offeror's demonstrated experience and depth of experience in performing relevant construction and design projects as defined in the solicitation submittal requirements. The assessment of the Offeror's relevant experience will be used as a means of evaluating the capability of the Offeror to successfully meet the requirements of the RFP. The Government will only review five (5) projects for construction and five (5) for design. Any projects submitted in excess of the five (5) for Construction Experience and five (5) for Design Experience will not be considered. The Government may consider the following:

- Relevant proposals demonstrating projects where the Offeror and the proposed design firm(s) have previously worked together may be considered more favorably than those that have not worked together.
- Relevant projects completed by the Offeror as a prime contractor may be considered more favorably than those they completed as a first-tier subcontractor or those completed by their affiliates/subsidiaries/ parent/LLC/LTD.
- Proposals demonstrating more relevant project experience with sustainable features may be considered more favorably than those that do not demonstrate experience with sustainable features.
- Proposals demonstrating relevant experience with a 20-year warranty to include but not limited to work performed under warranty may be considered more favorably.

Note: Offerors who fail to submit experience for each JV member in the absence of shared JV experience may be considered less favorably.

Note: If the Offeror is proposing as a single corporate entity (i.e. not as a Joint Venture), the Offeror may submit relevant project experience it performed as a partner in a previous Joint Venture. The offeror shall clearly demonstrate what portion of the work that they performed on this contract and shall not include work performed by the JV as a whole. The Offeror shall specifically address field work that they performed including field staffing and direct field work oversight and address home office management performed including the number/percentage of employees provided for the overall contract and the overall percentage of work performed.

Note 2: Vague commitments to support are likely insufficient; rather, they must demonstrate intent/manner of actual performance on the contract action being solicited. If meaningful involvement is not demonstrated, experience of the affiliate/subsidiary/parent/LLC/LTD firm will not be considered.

(3) <u>Factor 3 – Management Approach</u>

(i) Solicitation Submittal Requirements:

Offeror shall submit a narrative detailing Project Specific Requirements. The narrative should describe how the offeror intends to successfully complete work awarded under this MACC. The narrative plan shall not exceed five (5) pages. Information beyond the five (5) pages will not be considered, except for the critical path schedule which is not included in the page limitation. The narrative shall, at a minimum, address the following topics:

- Offeror's strategy for successful execution of work awarded under resulting MACC (e.g. managing multiple concurrent projects, managing the geographic coverage of the contract requirements, etc.)

- Offeror's plan for accomplishing both Design-Build and Design-Bid-Build projects under this MACC.

- Offeror's strategy for demolition of existing system and installation of new roofing that may include flashing, coping, exhaust hood removal and opening closure, and conduit rerouting.

- Offeror's approach for schedule coordination of potential outages for the rerouting of existing conduit.

- Proposal to include certificates for the ECATTS trained contractor, the contractor, and the roof designer. If certificates are not available, provide explanation. Omission of this information may be considered less favorably.

- For the Demonstration Project, provide a narrative work plan for successful execution of the demonstration project that should address the major elements of work, project risks, and mitigations.

- Schedule: For the Demonstration Project, provide a Critical Path Schedule illustrating the offeror's ability to achieve or improve on the construction duration of 180 calendar days. Identify key milestones for sequence of work as required to complete construction. The schedule shall demonstrate an understanding of the work to include the base CLIN and all options, a logical sequence of events to accomplish the work, and be sufficiently detailed to identify all of the major milestones.

    - The schedule should include:
        - Phasing Scheme
        - Primary Design and Construction Activities
        - Government Design reviews
        - Long lead items
        - And permit approvals as applicable

    - The schedule shall be based on a contract award date of 12 March 2025. This date is provided for proposal purposes only and is not dispositive of an anticipated/planned award date.

    - If the offeror is proposing a shorter construction duration than 180 calendar days, their proposal shall include their proposed construction duration number of calendar days and justification for a shorter duration. At the Government's discretion, the proposed number of days may be binding and used to calculate a construction completion date should the offeror be awarded the Demonstration Project. This calculated construction completion date will be included should the demonstration project be awarded. Proposed durations longer than the issued completion days will not be accepted.

(ii) Basis of Evaluation:

The narrative will be evaluated to determine whether the offeror's management approach will contribute to successful performance for this contract.

An Offeror that proposes a realistic and feasible schedule that is shorter than 180 calendar days from award must provide a justification. The Offeror may be considered more favorably in the overall evaluation of competitive proposals. Proposed completion dates in excess of 180 calendar days will be Unacceptable.

Proposals providing greater detail and demonstrating a greater understanding of the requirements, as outlined above, may be rated higher in the overall evaluation of competitive proposals.

(4) Factor 4 – Safety

(i) Solicitation Submittal Requirements:

The Offeror shall submit the following information:

The Days Away from Work, Restricted Duty, or Job Transfer (DART) Rate; and Total Case Rate (TCR) for the specified five (5) Calendar Years (CY), as well as a safety narrative as described further below. For a partnership, joint venture, the Offeror shall submit separate DART, TCR for the specified five (5) CY for each contractor who is part of the partnership or joint venture; however, only one safety narrative is required. Any fatalities experienced within this 5-year timeframe must be explained in detail, to include root cause and corrective actions.

NOTE: DART and TCR shall not be submitted for subcontractors

DART Rate: Submit five (5) previous complete calendar years' [CY2023, CY2022, CY2021, CY2020, and CY2019] worth of data (not an overall average). If the Offeror has no DART rate or a zero rate, for any year, affirmatively state so and explain why. If the DART rate calculation is 0.0, affirmatively state there were no DART cases during that year.

(2) Should a negative trend occur above moderate risk levels, an acceptable/detailed explanation is required, that includes any corrective actions taken for improvement.

a. Dart cases include injuries or illnesses resulting in death, days away from work, and/or restricted work or transfer to another job days beyond the day of injury/illness.

b. Calculation of DART rate: Multiply the total number of DART cases by 200,000, and then divide by the number of employee labor hours worked.

DART RATE = (Number of DART Incidents x 200,000) / (Total Number of Employee Labor Hours Worked)

(3) TCR Rate: Submit five (5) previous complete calendar years' [C CY2023, CY2022, CY2021, CY2020, and CY2019] worth of data (not an overall average). If the Offeror has no TCR rate or a zero rate, for any year, affirmatively state so and explain why. Should a negative trend occur above moderate risk levels, an acceptable/detailed explanation is required, that includes any corrective actions taken for improvement.

a. TCR cases include injuries or illnesses resulting in death, days away from work, restricted work or transfer to another job days beyond the day of injury/illness, medical treatment beyond first aid, or loss of consciousness.

b. Calculation of TCR rate: Multiply the total number of TCR incidents by 200,000, and then divide by the number of employee labor hours worked.

TCR RATE = (Number of TCR Incidents x 200,000) / (Total Number of Employee Labor Hours Worked)

(4) Technical Approach for Safety: Submit a narrative that addresses the following:

a. Describe the Offeror's approach to implementing and executing a Safety Management System (SMS) including Management/Leadership involvement, Employee involvement, Hazard prevention, Hazard control, Worksite analysis, and Safety and health training, to include the standard(s) used to benchmark the SMS.

b. Describe the evaluation process used to select potential subcontractors.

c. Describe the processes of how the Offeror will oversee safety compliance of subcontractors at all levels throughout the performance of the contract (to include their own in-house workforce).

d. The Technical Approach to Safety narrative shall be limited to two (2) pages.

(5) The Government reserves the right to review other available sources (public/Government internal) of information. These may include but are not limited to OSHA data, NAVFAC's Contractor Incident Reporting System (CIRS), Contractor Performance Assessment Reporting System (CPARS), Electronic Contract Management System (eCMS), etc.

(ii) Basis of Evaluation:

The Government is seeking to determine that the Offeror has consistently demonstrated a commitment to safety and that the Offeror plans to properly manage and implement safety procedures for itself and its subcontractors. The evaluation will collectively consider the DART rate, TCR, Technical Approach to Safety, and other sources of information available to the Government as part of such collective evaluation. The board will evaluate the DART rates and TCR to determine if the Offeror has demonstrated a history of safe work practices taking into account any negative trends and extenuating circumstances that impact the rating.

(1) DART Rate: The board will evaluate trends over the last five years considering changes that take it from one risk level (or more) to the next up or down. Negative trends occurring above moderate risk levels require the Offeror to provide a detailed explanation that includes any corrective actions taken for improvement.

a. Missing data without an explanation is considered a deficiency. NOTE: If an Offeror does not have data for a given year or was not required to track data, the Offeror shall insert "N/A". Offerors who submit a 0.00 are indicating No Incidents.

b. Declining trends that push the risk levels from Moderate Risk (MR) or higher to Low Risk (LR) or Very Low Risk (VLR) or consistent Low/Very Low risk ratings would indicate a strength.

c. An increasing DART rate trend could be considered a weakness (i.e. MR or better to High Risk (HR) or Extremely High Risk EHR)) if an acceptable explanation is not provided for any trends that rise above Moderate.

d. This chart correlates the DART rate to the level of risk:

Risk	DART Rate
Very Low Risk	Less Than 1.0
Low Risk	From 1.0 to 1.99
Moderate Risk	From 2.0 to 2.99
High Risk	From 3.0 to 4.0
Extremely High Risk	Greater than 4.0

(2) TCR Rate: The board will evaluate trends over the last five years considering changes that take it from one risk level (or more) to the next up or down. Negative trends occurring above moderate risk levels require the Offeror to provide a detailed explanation that includes any corrective actions taken for improvement.

a. Missing data without an explanation is considered a deficiency. NOTE: If an Offeror does not have data for a given year or was not required to track data, the Offeror shall insert "N/A". Offerors who submit a 0.00 are indicating No Incidents.

b. Declining trends that push the risk levels from Moderate Risk (MR) or higher to Low Risk (LR) or Very Low Risk (VLR)or consistent Low/Very Low ratings would indicate a strength.

c. An increasing TCR rate trend could be considered a weakness (i.e. MR or better to High Risk (HR) or Extremely High Risk EHR)) if an acceptable explanation is not provided for any trends that rise above Moderate.

d. This chart correlates the TCR rate to the level of risk:

Risk	TCR Rate
Very Low Risk	Less Than 2.49
Low Risk	From 2.5 to 3.49
Moderate Risk	From 3.5 to 4.49
High Risk	From 4.5 to 5.99
Extremely High Risk	Greater than 6.0

(3) The Technical Approach to Safety Narrative. To determine the degree to which the Offeror:

a. Describes a viable SMS that addresses elements; such as Management/Leadership involvement, Employee involvement, Hazard prevention, Hazard control, Worksite analysis, and Safety and health training, to include the standard(s) used to benchmark the SMS.

b. Describes a methodical process of evaluating subcontractor's safety performance in their selection process.
c. Describes a logical management plan to hold themselves and their subcontractors accountable for adhering to the safety requirements of the contract.
d. The Technical Approach to Safety narrative shall be limited to two (2) pages. Information on pages beyond this will not be considered.

(4) The Government reserves the right to review other available sources (public/Government internal) of information. These may include but are not limited to OSHA data, NAVFAC's Contractor Incident Reporting System (CIRS), Contractor Performance Assessment Reporting System (CPARS), Electronic Contract Management System (eCMS), etc.

(5) Factor 5 – Past Performance

(i) Solicitation Submittal Requirements:

If a completed Contractor Performance Assessment Reporting System (CPARS) evaluation is available, it shall be submitted with the proposal for each project included in Factor 2 for construction experience. If a completed AE CPARS evaluation is available, it shall be submitted with the proposal for each project included in Factor 2 for design experience. If there is not a completed CPARS evaluation then submit Past Performance Questionnaires (PPQ) (Attachment D) for each project included in Factor 2 for both Construction Experience and Design Experience. The Offeror should provide completed PPQ in the proposal. Offerors shall not incorporate by reference into their proposal PPQs previously submitted for other RFPs.

Note: The PPQ shall be completed and signed by the contracting agent and/or their representative responsible for the contract administration or from the facility owner/user. It shall not be from the prime offeror on this solicitation nor shall it be from a prime contractor to a subcontractor for other projects. However, CPARS for the AE completed by the prime may be submitted.

However, this does not preclude the Government from utilizing previously submitted PPQ information in the past performance evaluation. If the Offeror is unable to obtain a completed PPQ from a client for a project(s) before proposal closing date, the Offeror shall complete and submit with the proposal the first page of the PPQ, which will provide contract and client information for the respective project(s). The Government may make reasonable attempts to contact the client noted for that project(s) to obtain the PPQ information. However, Offerors should follow-up with clients/references to help ensure timely submittal of questionnaires. If the client requests, questionnaires that are clearly marked with this RFP number may be submitted directly to the Government's point of contact, Daniel Russell – daniel.russell.civ@us.navy.mil

Offerors may provide any information on problems encountered and the corrective actions taken on projects submitted under Factor 2, Experience. Offerors may also address any adverse past performance issues. Explanations shall not exceed four (4) pages) in total.

The Government reserves the right to contact references for verification or additional information. The Government's inability to contact any of the Offeror's references or the references unwillingness to provide the information requested may affect the Government's evaluation of this factor.

Performance award or additional information submitted will not be considered.

(ii) Basis of Evaluation:

This evaluation will consider how well the Offeror's team performed on relevant projects submitted under Factor 2, Experience and may also consider past performance on other projects currently documented in known sources.

The Government will consider the recency and relevance of the information (as defined in Factor 2, Experience), the source of the information, context of the data, and general trends in the Contractor's performance. This evaluation is separate and distinct from the Contracting Officer’s responsibility determination. The assessment of the Offeror’s team’s past performance will be used as a means of evaluating the Offeror’s team’s probability to successfully meet the requirements of the RFP.

Offerors lacking relevant past performance history will receive a NEUTRAL Confidence rating.

Section 00 70 00 - Conditions of the Contract

CONTRACT MINIMUM/MAXIMUM QUANTITY AND CONTRACT VALUE

The minimum quantity and contract value for all orders issued against this contract shall not be less than the minimum quantity and contract value stated in the following table. The maximum quantity and contract value for all orders issued against this contract shall not exceed the maximum quantity and contract value stated in the following table.

MINIMUM QUANTITY	MINIMUM AMOUNT	MAXIMUM QUANTITY	MAXIMUM AMOUNT
	$5,000.00		$249,000,000.00

DELIVERY/TASK ORDER MINIMUM/MAXIMUM QUANTITY AND ORDER VALUE

The minimum quantity and order value for each Delivery/Task Order issued shall not be less than the minimum quantity and order value stated in the following table. The maximum quantity and order value for each Delivery/Task Order issued shall not exceed the maximum quantity and order value stated in the following table.

MINIMUM QUANTITY	MINIMUM AMOUNT	MAXIMUM QUANTITY	MAXIMUM AMOUNT
	$150,000.00		$15,000,000.00

CLIN DELIVERY/TASK ORDER MINIMUM/MAXIMUM QUANTITY AND CLIN ORDER VALUE

The minimum quantity and order value for the given Delivery/Task Order issued for this CLIN shall not be less than the minimum quantity and order value stated in the following table. The maximum quantity and order value for the given Delivery/Task Order issued for this CLIN shall not exceed the maximum quantity and order value stated in the following table.

CLIN	MINIMUM QUANTITY	MINIMUM AMOUNT	MAXIMUM QUANTITY	MAXIMUM AMOUNT
0001		$		$
0002		$		$
0003		$		$

INSPECTION AND ACCEPTANCE TERMS

Supplies/services will be inspected/accepted at:

CLIN	INSPECT AT	INSPECT BY	ACCEPT AT	ACCEPT BY
0001	N/A	N/A	N/A	Government
0002	N/A	N/A	N/A	Government
0003	N/A	N/A	N/A	Government

CLAUSES INCORPORATED BY REFERENCE

52.202-1	Definitions	JUN 2020
52.203-3	Gratuities	APR 1984
52.203-5	Covenant Against Contingent Fees	MAY 2014
52.203-6	Restrictions On Subcontractor Sales To The Government	JUN 2020
52.203-7	Anti-Kickback Procedures	JUN 2020
52.203-8	Cancellation, Rescission, and Recovery of Funds for Illegal or Improper Activity	MAY 2014
52.203-10	Price Or Fee Adjustment For Illegal Or Improper Activity	MAY 2014
52.203-11	Certification And Disclosure Regarding Payments To Influence Certain Federal Transactions	SEP 2007
52.203-12	Limitation On Payments To Influence Certain Federal Transactions	JUN 2020
52.203-13	Contractor Code of Business Ethics and Conduct	NOV 2021
52.203-15	Whistleblower Protections Under the American Recovery and Reinvestment Act of 2009	JUN 2010
52.203-16	Preventing Personal Conflicts of Interest	JUN 2020
52.203-19	Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements	JAN 2017
52.204-2 Alt II	Security Requirements (MAR 2021) - Alternate II	APR 1984
52.204-4	Printed or Copied Double-Sided on Postconsumer Fiber Content Paper	MAY 2011
52.204-7	System for Award Management	OCT 2018
52.204-9	Personal Identity Verification of Contractor Personnel	JAN 2011
52.204-10	Reporting Executive Compensation and First-Tier Subcontract Awards	JUN 2020
52.204-13	System for Award Management Maintenance	OCT 2018
52.204-16	Commercial and Government Entity Code Reporting	AUG 2020
52.204-18	Commercial and Government Entity Code Maintenance	AUG 2020
52.204-19	Incorporation by Reference of Representations and Certifications.	DEC 2014
52.204-21	Basic Safeguarding of Covered Contractor Information Systems	NOV 2021
52.204-23	Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities	DEC 2023
52.204-25	Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment	NOV 2021
52.204-27	Prohibition on a ByteDance Covered Application	JUN 2023
52.209-7	Information Regarding Responsibility Matters	OCT 2018
52.209-9	Updates of Publicly Available Information Regarding Responsibility Matters	OCT 2018

52.209-10	Prohibition on Contracting With Inverted Domestic Corporations	NOV 2015
52.209-13	Violation of Arms Control Treaties or Agreements -- Certification	NOV 2021
52.210-1	Market Research	NOV 2021
52.211-13	Time Extensions	SEP 2000
52.211-15	Defense Priority And Allocation Requirements	APR 2008
52.214-34	Submission Of Offers In The English Language	APR 1991
52.214-35	Submission Of Offers In U.S. Currency	APR 1991
52.215-1	Instructions to Offerors--Competitive Acquisition	NOV 2021
52.215-2	Audit and Records--Negotiation	JUN 2020
52.215-6	Place of Performance	OCT 1997
52.215-11	Price Reduction for Defective Certified Cost or Pricing Data--Modifications	JUN 2020
52.215-13	Subcontractor Certified Cost or Pricing Data--Modifications	JUN 2020
52.215-19	Notification of Ownership Changes	OCT 1997
52.215-21	Requirements for Certified Cost or Pricing Data and Data Other Than Certified Cost or Pricing Data -- Modifications	NOV 2021
52.217-7	Option For Increased Quantity-Separately Priced Line Item	MAR 1989
52.219-6	Notice Of Total Small Business Set-Aside	NOV 2020
52.219-8	Utilization of Small Business Concerns	SEP 2023
52.219-13	Notice of Set-Aside of Orders	MAR 2020
52.219-14	Limitations On Subcontracting	OCT 2022
52.219-18	Notification Of Competition Limited To Eligible 8(a) Participants	OCT 2022
52.222-3	Convict Labor	JUN 2003
52.222-4	Contract Work Hours and Safety Standards - Overtime Compensation	MAY 2018
52.222-6	Construction Wage Rate Requirements	AUG 2018
52.222-7	Withholding of Funds	MAY 2014
52.222-8	Payrolls and Basic Records	JUL 2021
52.222-9	Apprentices and Trainees	JUL 2005
52.222-10	Compliance with Copeland Act Requirements	FEB 1988
52.222-11	Subcontracts (Labor Standards)	MAY 2014
52.222-12	Contract Termination-Debarment	MAY 2014
52.222-13	Compliance With Construction Wage Rate Requirements and Related Regulations	MAY 2014
52.222-14	Disputes Concerning Labor Standards	FEB 1988
52.222-15	Certification of Eligibility	MAY 2014
52.222-21	Prohibition Of Segregated Facilities	APR 2015
52.222-23	Notice of Requirement for Affirmative Action to Ensure Equal Employment Opportunity for Construction	FEB 1999
52.222-26	Equal Opportunity	SEP 2016
52.222-27	Affirmative Action Compliance Requirements for Construction	APR 2015
52.222-35	Equal Opportunity for Veterans	JUN 2020
52.222-36	Equal Opportunity for Workers with Disabilities	JUN 2020
52.222-37	Employment Reports on Veterans	JUN 2020
52.222-50	Combating Trafficking in Persons	NOV 2021
52.222-54	Employment Eligibility Verification	MAY 2022
52.222-55	Minimum Wages for Contractor Workers Under Executive Order 14026	JAN 2022
52.222-62	Paid Sick Leave Under Executive Order 13706	JAN 2022
52.223-2	Affirmative Procurement of Biobased Products Under Service and Construction Contracts	SEP 2013

52.223-3	Hazardous Material Identification And Material Safety Data	FEB 2021
52.223-5	Pollution Prevention and Right-to-Know Information	MAY 2011
52.223-6	Drug-Free Workplace	MAY 2001
52.223-9	Estimate of Percentage of Recovered Material Content for EPA-Designated Items	MAY 2008
52.223-11	Ozone-Depleting Substances and High Global Warming Potential Hydrofluorocarbons.	JUN 2016
52.223-12	Maintenance, Service, Repair, or Disposal of Refrigeration Equipment and Air Conditioners.	JUN 2016
52.223-15	Energy Efficiency in Energy-Consuming Products	MAY 2020
52.223-17	Affirmative Procurement of EPA-Designated Items in Service and Construction Contracts	AUG 2018
52.223-18	Encouraging Contractor Policies To Ban Text Messaging While Driving	JUN 2020
52.223-19	Compliance with Environmental Management Systems	MAY 2011
52.223-20	Aerosols	JUN 2016
52.223-21	Foams	JUN 2016
52.225-9	Buy American--Construction Materials	OCT 2022
52.225-11	Buy American--Construction Materials Under Trade Agreements	NOV 2023
52.225-12	Notice of Buy American Requirement - Construction Materials Under Trade Agreements	MAY 2014
52.225-13	Restrictions on Certain Foreign Purchases	FEB 2021
52.228-5	Insurance - Work On A Government Installation	JAN 1997
52.228-15	Performance and Payment Bonds--Construction	JUN 2020
52.229-4	Federal, State, And Local Taxes (State and Local Adjustments)	FEB 2013
52.232-5	Payments under Fixed-Price Construction Contracts	MAY 2014
52.232-17	Interest	MAY 2014
52.232-18	Availability Of Funds	APR 1984
52.232-27	Prompt Payment for Construction Contracts	JAN 2017
52.232-37	Multiple Payment Arrangements	MAY 1999
52.232-39	Unenforceability of Unauthorized Obligations	JUN 2013
52.232-40	Providing Accelerated Payments to Small Business Subcontractors	MAR 2023
52.233-1	Disputes	MAY 2014
52.233-3	Protest After Award	AUG 1996
52.233-4	Applicable Law for Breach of Contract Claim	OCT 2004
52.236-2	Differing Site Conditions	APR 1984
52.236-2	Differing Site Conditions	APR 1984
52.236-3	Site Investigation and Conditions Affecting the Work	APR 1984
52.236-4	Physical Data	APR 1984
52.236-5	Material and Workmanship	APR 1984
52.236-6	Superintendence by the Contractor	APR 1984
52.236-7	Permits and Responsibilities	NOV 1991
52.236-8	Other Contracts	APR 1984
52.236-9	Protection of Existing Vegetation, Structures, Equipment, Utilities, and Improvements	APR 1984
52.236-10	Operations and Storage Areas	APR 1984
52.236-11	Use and Possession Prior to Completion	APR 1984
52.236-12	Cleaning Up	APR 1984
52.236-13	Accident Prevention	NOV 1991
52.236-17	Layout of Work	APR 1984
52.236-21	Specifications and Drawings for Construction	FEB 1997
52.236-26	Preconstruction Conference	FEB 1995

52.242-5	Payments to Small Business Subcontractors	JAN 2017
52.242-13	Bankruptcy	JUL 1995
52.242-14	Suspension of Work	APR 1984
52.243-4	Changes	JUN 2007
52.243-6	Change Order Accounting	APR 1984
52.244-2	Subcontracts	JUN 2020
52.244-6	Subcontracts for Commercial Products and Commercial Services	DEC 2023
52.246-12	Inspection of Construction	AUG 1996
52.246-21	Warranty of Construction	MAR 1994
52.247-34	F.O.B. Destination	JAN 1991
52.248-3	Value Engineering-Construction	OCT 2020
52.249-2 Alt I	Termination for Convenience of the Government (Fixed-Price) (Apr 2012) - Alternate I	SEP 1996
52.249-10	Default (Fixed-Price Construction)	APR 1984
52.253-1	Computer Generated Forms	JAN 1991
252.203-7000	Requirements Relating to Compensation of Former DoD Officials	SEP 2011
252.203-7001	Prohibition On Persons Convicted of Fraud or Other Defense-Contract-Related Felonies	JAN 2023
252.203-7002	Requirement to Inform Employees of Whistleblower Rights	DEC 2022
252.203-7004	Display of Hotline Posters	JAN 2023
252.203-7005	Representation Relating to Compensation of Former DoD Officials	SEP 2022
252.204-7000	Disclosure Of Information	OCT 2016
252.204-7003	Control Of Government Personnel Work Product	APR 1992
252.204-7004	Antiterrorism Awareness Training for Contractors	JAN 2023
252.204-7006	Billing Instructions--Cost Vouchers	MAY 2023
252.204-7008	Compliance With Safeguarding Covered Defense Information Controls	OCT 2016
252.204-7009	Limitations on the Use or Disclosure of Third-Party Contractor Reported Cyber Incident Information	JAN 2023
252.204-7010	Requirement for Contractor to Notify DoD if the Contractor's Activities are Subject to Reporting Under the U.S.-International Atomic Energy Agency Additional Protocol	JAN 2009
252.204-7012	Safeguarding Covered Defense Information and Cyber Incident Reporting	JAN 2023
252.204-7015	Notice of Authorized Disclosure of Information for Litigation Support	JAN 2023
252.204-7017	Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services -- Representation	MAY 2021
252.204-7018	Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services	JAN 2023
252.204-7019	Notice of NIST SP 800-171 DoD Assessment Requirements	NOV 2023
252.204-7020	NIST SP 800-171 DoD Assessment Requirements	NOV 2023
252.204-7024	Notice on the Use of the Supplier Performance Risk System	MAR 2023
252.208-7000	Intent To Furnish Precious Metals As Government--Furnished Material	DEC 1991
252.209-7004	Subcontracting With Firms That Are Owned or Controlled By The Government of a Country that is a State Sponsor of Terrorism	MAY 2019
252.215-7008	Only One Offer	DEC 2022
252.219-7010	Notification of Competition Limited to Eligible 8(a) Participants -- Partnership Agreement	OCT 2019
252.223-7004	Drug Free Work Force	SEP 1988

252.223-7006	Prohibition On Storage, Treatment, and Disposal of Toxic or Hazardous Materials	SEP 2014
252.223-7008	Prohibition of Hexavalent Chromium	JAN 2023
252.223-7997 (Dev)	Prohibition on Procurement of Certain Items Containing Perfluorooctane Sulfonate or Perfluorooctanoic Acid - Representation (DEVIATION 2022-O0010)	SEP 2022
252.225-7002	Qualifying Country Sources As Subcontractors	MAR 2022
252.225-7006	Acquisition of the American Flag	DEC 2022
252.225-7012	Preference For Certain Domestic Commodities	APR 2022
252.225-7016	Restriction on Acquisition of Ball and Roller Bearings	JAN 2023
252.225-7017	Photovoltaic Devices	NOV 2023
252.225-7018	Photovoltaic Devices--Certificate	NOV 2023
252.225-7030	Restriction On Acquisition Of Carbon, Alloy, And Armor Steel Plate	DEC 2006
252.225-7048	Export-Controlled Items	JUN 2013
252.225-7055	Representation Regarding Business Operations with the Maduro Regime	MAY 2022
252.225-7057	Preaward Disclosure of Employment of Individuals Who Work in the People's Republic of China	AUG 2022
252.225-7060	Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region	JUN 2023
252.225-7966 (Dev)	Prohibition Regarding Russian Fossil Fuel Business Operations - Representation (Deviation 2024-O0006).	FEB 2024
252.225-7967 (Dev)	Prohibition Regarding Russian Fossil Fuel Business Operations (Deviation 2024-O0006).	FEB 2024
252.227-7018	Rights in Other Than Commercial Technical Data and Computer Software--Small Business Innovation Research (SBIR) Program	NOV 2023
252.227-7022	Government Rights (Unlimited)	MAR 1979
252.227-7023	Drawings and Other Data to become Property of Government	MAR 1979
252.227-7033	Rights in Shop Drawings	APR 1966
252.232-7003	Electronic Submission of Payment Requests and Receiving Reports	DEC 2018
252.232-7010	Levies on Contract Payments	DEC 2006
252.236-7000	Modification Proposals-Price Breakdown	DEC 1991
252.236-7002	Obstruction of Navigable Waterways	DEC 1991
252.243-7001	Pricing Of Contract Modifications	DEC 1991
252.243-7002	Requests for Equitable Adjustment	DEC 2022
252.244-7000	Subcontracts for Commercial Products or Commercial Services	NOV 2023
252.247-7023	Transportation of Supplies by Sea	JAN 2023

CLAUSES INCORPORATED BY FULL TEXT

52.204-8 ANNUAL REPRESENTATIONS AND CERTIFICATIONS (MAR 2023)

(a)(1) The North American Industry Classification System (NAICS) code for this acquisition is 238160.

(2) The small business size standard is $19,000,000.

(3) The small business size standard for a concern that submits an offer, other than on a construction or service acquisition, but proposes to furnish an end item that it did not itself manufacture, process, or produce is 500

employees, or 150 employees for information technology value-added resellers under NAICS code 541519, if the acquisition--

(i) Is set aside for small business and has a value above the simplified acquisition threshold;

(ii) Uses the HUBZone price evaluation preference regardless of dollar value, unless the offeror waives the price evaluation preference; or

(iii) Is an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

(b)(1) If the provision at 52.204-7, System for Award Management, is included in this solicitation, paragraph (d) of this provision applies.

(2) If the provision at 52.204-7, System for Award Management, is not included in this solicitation, and the Offeror has an active registration in the System for Award Management (SAM), the Offeror may
choose to use paragraph (d) of this provision instead of completing the corresponding individual representations and certifications in the solicitation. The Offeror shall indicate which option applies by
checking one of the following boxes:

(   ) Paragraph (d) applies.

(   ) Paragraph (d) does not apply and the offeror has completed the individual representations and certifications in the solicitation.

(c) (1) The following representations or certifications in SAM are applicable to this solicitation as indicated:

(i) 52.203-2, Certificate of Independent Price Determination. This provision applies to solicitations when a firm-fixed-price contract or fixed-price contract with economic price adjustment is contemplated, unless—

(A) The acquisition is to be made under the simplified acquisition procedures in Part 13;

(B) The solicitation is a request for technical proposals under two-step sealed bidding procedures; or

(C) The solicitation is for utility services for which rates are set by law or regulation.

(ii) 52.203-11, Certification and Disclosure Regarding Payments to Influence Certain Federal Transactions. This provision applies to solicitations expected to exceed $150,000.

(iii) 52.203-18, Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements--Representation. This provision applies to all solicitations.

(iv) 52.204-3, Taxpayer Identification. This provision applies to solicitations that do not include the provision at 52.204-7, System for Award Management.

(v) 52.204-5, Women-Owned Business (Other Than Small Business). This provision applies to solicitations that—

(A) Are not set aside for small business concerns;

(B) Exceed the simplified acquisition threshold; and

(C) Are for contracts that will be performed in the United States or its outlying areas.

(vi) 52.204-26, Covered Telecommunications Equipment or Services--Representation. This provision applies to all solicitations.

(vii) 52.209-2, Prohibition on Contracting with Inverted Domestic Corporations--Representation.

(viii) 52.209-5, Certification Regarding Responsibility Matters. This provision applies to solicitations where the contract value is expected to exceed the simplified acquisition threshold.

(ix) 52.209-11, Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law. This provision applies to all solicitations.

(x) 52.214-14, Place of Performance--Sealed Bidding. This provision applies to invitations for bids except those in which the place of performance is specified by the Government.

(xi) 52.215-6, Place of Performance. This provision applies to solicitations unless the place of performance is specified by the Government.

(xii) 52.219-1, Small Business Program Representations (Basic, Alternates I, and II). This provision applies to solicitations when the contract is for supplies to be delivered or services to be performed in the United States or its outlying areas, or when the contracting officer has applied part 19 in accordance with 19.000(b)(1)(ii).

(A) The basic provision applies when the solicitations are issued by other than DoD, NASA, and the Coast Guard.

(B) The provision with its Alternate I applies to solicitations issued by DoD, NASA, or the Coast Guard.

(C) The provision with its Alternate II applies to solicitations that will result in a multiple-award contract with more than one NAICS code assigned.

(xiii) 52.219-2, Equal Low Bids. This provision applies to solicitations when contracting by sealed bidding and the contract is for supplies to be delivered or services to be performed in the United States or its outlying areas, or when the contracting officer has applied part 19 in accordance with 19.000(b)(1)(ii).

(xiv) 52.222-22, Previous Contracts and Compliance Reports. This provision applies to solicitations that include the clause at 52.222-26, Equal Opportunity.

(xv) 52.222-25, Affirmative Action Compliance. This provision applies to solicitations, other than those for construction, when the solicitation includes the clause at 52.222-26, Equal Opportunity.

(xvi) 52.222-38, Compliance with Veterans' Employment Reporting Requirements. This provision applies to solicitations when it is anticipated the contract award will exceed the simplified acquisition threshold and the contract is not for acquisition of commercial products or commercial services.

(xvii) 52.223-1, Biobased Product Certification. This provision applies to solicitations that require the delivery or specify the use of USDA-designated items; or include the clause at 52.223-2, Affirmative Procurement of Biobased Products Under Service and Construction Contracts.

(xviii) 52.223-4, Recovered Material Certification. This provision applies to solicitations that are for, or specify the use of, EPA- designated items.

(xix) 52.223-22, Public Disclosure of Greenhouse Gas Emissions and Reduction Goals--Representation. This provision applies to solicitations that include the clause at 52.204-7.)

(xx) 52.225-2, Buy American Certificate. This provision applies to solicitations containing the clause at 52.225-1.

(xxi) 52.225-4, Buy American-Free Trade Agreements-Israeli Trade Act Certificate. (Basic, Alternates II and III.) This provision applies to solicitations containing the clause at 52.225-3.

(A) If the acquisition value is less than $50,000, the basic provision applies.

(B) If the acquisition value is $50,000 or more but is less than $92,319, the provision with its Alternate II applies.

(C) If the acquisition value is $92,319 or more but is less than $100,000, the provision with its Alternate III applies.

(xxii) 52.225-6, Trade Agreements Certificate. This provision applies to solicitations containing the clause at 52.225-5.

(xxiii) 52.225-20, Prohibition on Conducting Restricted Business Operations in Sudan--Certification. This provision applies to all solicitations.

(xxiv) 52.225-25, Prohibition on Contracting with Entities Engaging in Certain Activities or Transactions Relating to Iran—Representation and Certification. This provision applies to all solicitations.

(xxv) 52.226-2, Historically Black College or University and Minority Institution Representation. This provision applies to solicitations for research, studies, supplies, or services of the type normally acquired from higher educational institutions.

(2) The following representations or certifications are applicable as indicated by the Contracting Officer:

[Contracting Officer check as appropriate.]

XX (i) 52.204-17, Ownership or Control of Offeror.

XX (ii) 52.204-20, Predecessor of Offeror.

(iii) 52.222-18, Certification Regarding Knowledge of Child Labor for Listed End Products.

(iv) 52.222-48, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment--Certification.

(v) 52.222-52 Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services--Certification.

(vi) 52.223-9, with its Alternate I, Estimate of Percentage of Recovered Material Content for EPA-Designated Products (Alternate I only).

(vii) 52.227-6, Royalty Information.

(A) Basic.

(B) Alternate I.

(viii) 52.227-15, Representation of Limited Rights Data and Restricted Computer Software.

(d) The Offeror has completed the annual representations and certifications electronically in SAM accessed through https://www.sam.gov. After reviewing the SAM information, the Offeror verifies by submission of the offer that the representations and certifications currently posted electronically that apply to this solicitation as indicated in paragraph (c) of this provision have been entered or updated within the last 12 months, are current, accurate, complete, and applicable to this solicitation (including the business size standard applicable to the NAICS code referenced for this solicitation), as of the date of this offer and are incorporated in this offer by reference (see FAR 4.1201); except for the changes identified below [offeror to insert changes, identifying change by clause number, title, date]. These amended representation(s) and/or certification(s) are also incorporated in this offer and are current, accurate, and complete as of the date of this offer.

FAR Clause	Title	Date	Change
------	----------	------	------

Any changes provided by the offeror are applicable to this solicitation only, and do not result in an update to the representations and certifications posted on SAM.

(End of provision)

52.204-24 REPRESENTATION REGARDING CERTAIN TELECOMMUNICATIONS AND VIDEO SURVEILLANCE SERVICES OR EQUIPMENT (NOV 2021)

The Offeror shall not complete the representation at paragraph (d)(1) of this provision if the Offeror has represented that it "does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument" in paragraph (c)(1) in the provision at 52.204-26, Covered Telecommunications Equipment or Services--Representation, or in paragraph (v)(2)(i) of the provision at 52.212-3, Offeror Representations and Certifications-Commercial Products and Commercial Services. The Offeror shall not complete the representation in paragraph (d)(2) of this provision if the Offeror has represented that it "does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services" in paragraph (c)(2) of the provision at 52.204-26, or in paragraph (v)(2)(ii) of the provision at 52.212-3.

(a) Definitions. As used in this provision-

Backhaul, covered telecommunications equipment or services, critical technology, interconnection arrangements, reasonable inquiry, roaming, and substantial or essential component have the meanings provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

(b) Prohibition.

(1) Section 889(a)(1)(A) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2019, from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. Nothing in the prohibition shall be construed to--

(i) Prohibit the head of an executive agency from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(2) Section 889(a)(1)(B) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2020, from entering into a contract or extending or renewing a contract with an entity that uses any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. This prohibition applies to the use of covered telecommunications equipment or services, regardless of whether that use is in performance of work under a Federal contract. Nothing in the prohibition shall be construed to--

(i) Prohibit the head of an executive agency from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(c) Procedures. The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (https://www.sam.gov) for entities excluded from receiving federal awards for "covered telecommunications equipment or services."

(d) Representations. The Offeror represents that--

(1) It [___] will, [___] will not provide covered telecommunications equipment or services to the Government in the performance of any contract, subcontract or other contractual instrument resulting from this solicitation. The Offeror shall provide the additional disclosure information required at paragraph (e)(1) of this section if the Offeror responds "will" in paragraph (d)(1) of this section; and

(2) After conducting a reasonable inquiry, for purposes of this representation, the Offeror represents that--

It [___] does, [___] does not use covered telecommunications equipment or services, or use any equipment, system, or service that uses covered telecommunications equipment or services. The Offeror shall provide the additional disclosure information required at paragraph (e)(2) of this section if the Offeror responds "does" in paragraph (d)(2) of this section.

(e) Disclosures.

(1) Disclosure for the representation in paragraph (d)(1) of this provision. If the Offeror has responded "will" in the representation in paragraph (d)(1) of this provision, the Offeror shall provide the following information as part of the offer:

(i) For covered equipment--

(A) The entity that produced the covered telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the original equipment manufacturer (OEM) or a distributor, if known);

(B) A description of all covered telecommunications equipment offered (include brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); and

(C) Explanation of the proposed use of covered telecommunications equipment and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(1) of this provision.

(ii) For covered services--

(A) If the service is related to item maintenance: A description of all covered telecommunications services offered (include on the item being maintained: Brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); or

(B) If not associated with maintenance, the Product Service Code (PSC) of the service being provided; and explanation of the proposed use of covered telecommunications services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(1) of this provision.

(2) Disclosure for the representation in paragraph (d)(2) of this provision. If the Offeror has responded "does" in the representation in paragraph (d)(2) of this provision, the Offeror shall provide the following information as part of the offer:

(i) For covered equipment--

(A) The entity that produced the covered telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known);

(B) A description of all covered telecommunications equipment offered (include brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); and

(C) Explanation of the proposed use of covered telecommunications equipment and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(2) of this provision.

(ii) For covered services--

(A) If the service is related to item maintenance: A description of all covered telecommunications services offered (include on the item being maintained: Brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); or

(B) If not associated with maintenance, the PSC of the service being provided; and explanation of the proposed use of covered telecommunications services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(2) of this provision.

(End of provision)

52.204-27 PROHIBITION ON A BYTEDANCE COVERED APPLICATION (JUN 2023)

(a) Definitions. As used in this clause--

Covered application means the social networking service TikTok or any successor application or service developed or provided by ByteDance Limited or an entity owned by ByteDance Limited.

Information technology, as defined in 40 U.S.C. 11101(6)--

(1) Means any equipment or interconnected system or subsystem of equipment, used in the automatic acquisition, storage, analysis, evaluation, manipulation, management, movement, control, display, switching, interchange, transmission, or reception of data or information by the executive agency, if the equipment is used by the executive agency directly or is used by a contractor under a contract with the executive agency that requires the use-

(i) Of that equipment; or

(ii) Of that equipment to a significant extent in the performance of a service or the furnishing of a product;

(2) Includes computers, ancillary equipment (including imaging peripherals, input, output, and storage devices necessary for security and surveillance), peripheral equipment designed to be controlled by the central processing unit of a computer, software, firmware and similar procedures, services (including support services), and related resources; but

(3) Does not include any equipment acquired by a Federal contractor incidental to a Federal contract.

(b) Prohibition. Section 102 of Division R of the Consolidated Appropriations Act, 2023 (Pub. L. 117-328), the No TikTok on Government Devices Act, and its implementing guidance under Office of Management and Budget (OMB) Memorandum M-23-13, dated February 27, 2023, "No TikTok on Government Devices" Implementation Guidance, collectively prohibit the presence or use of a covered application on executive agency information technology, including certain equipment used by Federal contractors. The Contractor is prohibited from having or using a covered application on any information technology owned or managed by the Government, or on any information technology used or provided by the Contractor under this contract, including equipment provided by the Contractor's employees; however, this prohibition does not apply if the Contracting Officer provides written notification to the Contractor that an exception has been granted in accordance with OMB Memorandum M-23-13.

(c) Subcontracts. The Contractor shall insert the substance of this clause, including this paragraph (c), in all subcontracts, including subcontracts for the acquisition of commercial products or commercial services.

(End of clause)

52.209-2 PROHIBITION ON CONTRACTING WITH INVERTED DOMESTIC CORPORATIONS--REPRESENTATION (NOV 2015)

(a) Definitions. Inverted domestic corporation and subsidiary have the meaning given in the clause of this contract entitled Prohibition on Contracting with Inverted Domestic Corporations (52.209-10).

(b) Government agencies are not permitted to use appropriated (or otherwise made available) funds for contracts with either an inverted domestic corporation, or a subsidiary of an inverted domestic corporation, unless the exception at 9.108-2(b) applies or the requirement is waived in accordance with the procedures at 9.108-4.

(c) Representation. The Offeror represents that--

(1) It [___] is, [___] is not an inverted domestic corporation; and

(2) It [___] is, [___] is not a subsidiary of an inverted domestic corporation.

(End of provision)

52.211-10 COMMENCEMENT, PROSECUTION, AND COMPLETION OF WORK (APR 1984)

The Contractor shall be required to (a) commence work under this contract within 15 calendar days after the date the Contractor receives the notice to proceed, (b) prosecute the work diligently, and (c) complete the entire work ready for use not later than 180 Calendar days (demonstration project). The time statedfor completion shall include final cleanup of the promoses.

Completion dates will be included in each subsequent task order

(End of clause)

52.211-12 LIQUIDATED DAMAGES--CONSTRUCTION (SEP 2000)

(a) If the Contractor fails to complete the work within the time specified in the contract, the Contractor shall pay liquidated damages to the Government in the amount of $ for each calendar day of delay until the work is completed or accepted.

*Liquidated Damages for the demonstration project are provided in the the subsequent task order if awarded.
*Liquidated Damages shall be specified on each subsequent task order.

(b) If the Government terminates the Contractor's right to proceed, liquidated damages will continue to accrue until the work is completed. These liquidated damages are in addition to excess costs of repurchase under the Termination clause.

(End of clause)

52.211-14 NOTICE OF PRIORITY RATING FOR NATIONAL DEFENSE, EMERGENCY PREPAREDNESS, AND ENERGY PROGRAM USE (APR 2008)

Any contract awarded as a result of this solicitation will be DX rated order; X DO rated order certified for national defense, emergency preparedness, and energy program use under the Defense Priorities and Allocations System (DPAS) (15 CFR 700), and the Contractor will be required to follow all of the requirements of this regulation.
(End of provision)

52.216-1 TYPE OF CONTRACT (APR 1984)

The Government contemplates award of a Indefinite Delivery/Indefinite Quantity contract resulting from this solicitation.

(End of provision)

52.216-18 ORDERING. (AUG 2020)

(a) Any supplies and services to be furnished under this contract shall be ordered by issuance of delivery orders or task orders by the individuals or activities designated in the Schedule. Such orders may be issued from December 2024 through September 2032.

(b) All delivery orders or task orders are subject to the terms and conditions of this contract. In the event of conflict between a delivery order or task order and this contract, the contract shall control.

(c) A delivery order or task order is considered "issued" when--

(1) If sent by mail (includes transmittal by U.S. mail or private delivery service), the Government deposits the order in the mail;

(2) If sent by fax, the Government transmits the order to the Contractor's fax number; or

(3) If sent electronically, the Government either--

(i) Posts a copy of the delivery order or task order to a Government document access system, and notice is sent to the
Contractor; or

(ii) Distributes the delivery order or task order via email to the Contractor's email address.

(d) Orders may be issued by methods other than those enumerated in this clause only if authorized in the contract.

(End of clause)

52.216-19 ORDER LIMITATIONS (OCT 1995)

(a) Minimum order. When the Government requires supplies or services covered by this contract in an amount of less than $150,000 (insert dollar figure or quantity), the Government is not obligated to purchase, nor is the Contractor obligated to furnish, those supplies or services under the contract.

(b) Maximum order. The Contractor is not obligated to honor -

(1) Any order for a single item in excess of $50,000,000 (insert dollar figure or quantity);

(2) Any order for a combination of items in excess of $50,000,000 (insert dollar figure or quantity); or

(3) A series of orders from the same ordering office within 5 days that together call for quantities exceeding the limitation in paragraph (b) (1) or (2) of this section.

(c) If this is a requirements contract (i.e., includes the Requirements clause at subsection 52.216-21 of the Federal Acquisition Regulation (FAR)), the Government is not required to order a part of any one requirement from the Contractor if that requirement exceeds the maximum-order limitations in paragraph (b) of this section.

(d) Notwithstanding paragraphs (b) and (c) of this section, the Contractor shall honor any order exceeding the maximum order limitations in paragraph (b), unless that order (or orders) is returned to the ordering office within 5days after issuance, with written notice stating the Contractor's intent not to ship the item (or items) called for and the reasons. Upon receiving this notice, the Government may acquire the supplies or services from another source.

(End of clause)

52.217-5 EVALUATION OF OPTIONS (JUL 1990)

Except when it is determined in accordance with FAR 17.206(b) not to be in the Government's best interests, the Government will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement. Evaluation of options will not obligate the Government to exercise the option(s).

(End of provision)

52.217-9 OPTION TO EXTEND THE TERM OF THE CONTRACT (MAR 2000)

(a) The Government may extend the term of this contract by written notice to the Contractor within 10 days provided that the Government gives the Contractor a preliminary written notice of its intent to extend at least 30 days before the contract expires. The preliminary notice does not commit the Government to an extension.

(b) If the Government exercises this option, the extended contract shall be considered to include this option clause.

(c) The total duration of this contract, including the exercise of any options under this clause, shall not exceed 360 days.
(End of clause)

52.219-1 SMALL BUSINESS PROGRAM REPRESENTATIONS (SEP 2023)

(a) Definitions. As used in this provision--

Economically disadvantaged women-owned small business (EDWOSB) concern means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States and who are economically disadvantaged in accordance with 13 CFR part 127, and the concern is certified by SBA or an approved third-party certifier in accordance with 13 CFR 127.300. It automatically qualifies as a women-owned small business concern eligible under the WOSB Program.

Service-disabled veteran-owned small business concern--

(1) Means a small business concern--

(i) Not less than 51 percent of which is owned by one or more service-disabled veterans or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more service-disabled veterans; and

(ii) The management and daily business operations of which are controlled by one or more service-disabled veterans or, in the case of a service-disabled veteran with permanent and severe disability, the spouse or permanent caregiver of such veteran.

(2) Service-disabled veteran means a veteran, as defined in 38 U.S.C. 101(2), with a disability that is service-connected, as defined in 38 U.S.C. 101(16).

Small business concern--

(1) Means a concern, including its affiliates, that is independently owned and operated, not dominant in its field of operation, and qualified as a small business under the criteria in 13 CFR part 121 and the size standard in paragraph (b) of this provision.

(2) Affiliates, as used in this definition, means business concerns, one of whom directly or indirectly controls or has the power to control the others, or a third party or parties control or have the power to control the others. In determining whether affiliation exists, consideration is given to all appropriate factors including common ownership, common management, and contractual relationships. SBA determines affiliation based on the factors set forth at 13 CFR 121.103.

Small disadvantaged business concern, consistent with 13 CFR 124.1001, means a small business concern under the size standard applicable to the acquisition, that--

(1) Is at least 51 percent unconditionally and directly owned (as defined at 13 CFR 124.105) by--

(i) One or more socially disadvantaged (as defined at 13 CFR 124.103) and economically disadvantaged (as defined at 13 CFR 124.104) individuals who are citizens of the United States, and

(ii) Each individual claiming economic disadvantage has a net worth not exceeding the threshold at 13 CFR 124.104(c)(2) after taking into account the applicable exclusions set forth at 13 CFR 124.104(c)(2); and

(2) The management and daily business operations of which are controlled (as defined at 13 CFR 124.106) by individuals who meet the criteria in paragraphs (1)(i) and (ii) of this definition.

Veteran-owned small business concern means a small business concern--

(1) Not less than 51 percent of which is owned by one or more veterans (as defined at 38 U.S.C. 101(2)) or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more veterans; and

(2) The management and daily business operations of which are controlled by one or more veterans.

Women-owned small business concern means a small business concern--

(1) That is at least 51 percent owned by one or more women; or, in the case of any publicly owned business, at least 51 percent of the stock of which is owned by one or more women; and

(2) Whose management and daily business operations are controlled by one or more women.

Women-owned small business (WOSB) concern eligible under the WOSB Program (in accordance with 13 CFR part 127) means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States, and the concern is certified by SBA or an approved third-party certifier in accordance with 13 CFR 127.300.

(b)(1) The North American Industry Classification System (NAICS) code for this acquisition is [238160].

(2) The small business size standard is [19M].

(3) The small business size standard for a concern that submits an offer, other than on a construction or service acquisition, but proposes to furnish an end item that it did not itself manufacture, process, or produce (i.e., nonmanufacturer), is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519, if the acquisition--

(i) Is set aside for small business and has a value above the simplified acquisition threshold;

(ii) Uses the HUBZone price evaluation preference regardless of dollar value, unless the offeror waives the price evaluation preference; or

(iii) Is an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

(c) Representations.

(1) The offeror represents as part of its offer that--

(i) It [___] is, [___] is not a small business concern; or

(ii) It [___] is, [___] is not a small business joint venture that complies with the requirements of 13 CFR 121.103(h) and 13 CFR 125.8(a) and (b). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: ___ .]

(2) [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents that it [___] is, [___] is not, a small disadvantaged business concern as defined in 13 CFR 124.1001.

(3) [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents as part of its offer that it [___] is, [___] is not a women-owned small business concern.

(4) Women-owned small business (WOSB) joint venture eligible under the WOSB Program. The offeror represents as part of its offer that it [____] is, [____] is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: ___ .]

(5) Economically disadvantaged women-owned small business (EDWOSB) joint venture. The offeror represents as part of its offer that it [___] is, [___] is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: ___ .]

(6) [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents as part of its offer that it [___] is, [___] is not a veteran-owned small business concern.

(7) [Complete only if the offeror represented itself as a veteran-owned small business concern in paragraph (c)(6) of this provision.] The offeror represents as part of its offer that--

(i) It [___] is, [___] is not a service-disabled veteran-owned small business concern; or

(ii) It [___] is, [___] is not a service-disabled veteran-owned joint venture that complies with the requirements of 13 CFR 125.18(b)(1) and (2). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: ___ .] Each service-disabled veteran-owned small business concern participating in the joint venture shall provide representation of its service-disabled veteran-owned small business concern status.

(8) [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents, as part of its offer, that--

(i) It [___] is, [___] is not a HUBZone small business concern listed, on the date of this representation, as having been certified by SBA as a HUBZone small business concern in the Dynamic Small Business Search and SAM, and will attempt to maintain an employment rate of HUBZone residents of 35 percent of its employees during performance of a HUBZone contract (see 13 CFR 126.200(e)(1)); and

(ii) It [___] is, [___] is not a HUBZone joint venture that complies with the requirements of 13 CFR 126.616(a) through (c). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: ___ .] Each HUBZone small business concern participating in the HUBZone joint venture shall provide representation of its HUBZone status.

(d) Notice. Under 15 U.S.C. 645(d), any person who misrepresents a firm's status as a business concern that is small, HUBZone small, small disadvantaged, service-disabled veteran-owned small, economically disadvantaged women-owned small, or women-owned small eligible under the WOSB Program in order to obtain a contract to be awarded under the preference programs established pursuant to section 8, 9, 15, 31, and 36 of the Small Business Act or any other provision of Federal law that specifically references section 8(d) for a definition of program eligibility, shall—

(1) Be punished by imposition of fine, imprisonment, or both;

(2) Be subject to administrative remedies, including suspension and debarment; and

(3) Be ineligible for participation in programs conducted under the authority of the Act.

(End of provision)

52.219-14 LIMITATIONS ON SUBCONTRACTING (OCT 2022)

(a) This clause does not apply to the unrestricted portion of a partial set-aside.

(b) Definition. Similarly situated entity, as used in this clause, means a first-tier subcontractor, including an independent contractor, that--

(1) Has the same small business program status as that which qualified the prime contractor for the award (e.g., for a small business set-aside contract, any small business concern, without regard to its socioeconomic status); and

(2) Is considered small for the size standard under the North American Industry Classification System (NAICS) code the prime contractor assigned to the subcontract.

(c) Applicability. This clause applies only to--

(1) Contracts that have been set aside for any of the small business concerns identified in 19.000(a)(3);

(2) Part or parts of a multiple-award contract that have been set aside for any of the small business concerns identified in 19.000(a)(3);

(3) Contracts that have been awarded on a sole-source basis in accordance with subparts 19.8, 19.13, 19.14, and 19.15;

(4) Orders expected to exceed the simplified acquisition threshold and that are--

(i) Set aside for small business concerns under multiple-award contracts, as described in 8.405-5 and 16.505(b)(2)(i)(F); or

(ii) Issued directly to small business concerns under multiple-award contracts as described in 19.504(c)(1)(ii);

(5) Orders, regardless of dollar value, that are--

(i) Set aside in accordance with subparts 19.8, 19.13, 19.14, or 19.15 under multiple-award contracts, as described in 8.405-5 and 16.505(b)(2)(i)(F); or

(ii) Issued directly to concerns that qualify for the programs described in subparts 19.8, 19.13, 19.14, or 19.15 under multiple-award contracts, as described in 19.504(c)(1)(ii); and

(6) Contracts using the HUBZone price evaluation preference to award to a HUBZone small business concern unless the concern waived the evaluation preference.

(d) Independent contractors. An independent contractor shall be considered a subcontractor.

(e) Limitations on subcontracting. By submission of an offer and execution of a contract, the Contractor agrees that in performance of a contract assigned a North American Industry Classification System (NAICS) code for--

(1) Services (except construction), it will not pay more than 50 percent of the amount paid by the Government for contract performance to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 50 percent subcontract amount that cannot be exceeded. When a contract includes both services and supplies, the 50 percent limitation shall apply only to the service portion of the contract;

(2) Supplies (other than procurement from a nonmanufacturer of such supplies), it will not pay more than 50 percent of the amount paid by the Government for contract performance, excluding the cost of materials, to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 50 percent subcontract amount that cannot be exceeded. When a contract includes both supplies and services, the 50 percent limitation shall apply only to the supply portion of the contract;

(3) General construction, it will not pay more than 85 percent of the amount paid by the Government for contract performance, excluding the cost of materials, to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 85 percent subcontract amount that cannot be exceeded; or

(4) Construction by special trade contractors, it will not pay more than 75 percent of the amount paid by the Government for contract performance, excluding the cost of materials, to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 75 percent subcontract amount that cannot be exceeded.

(f) The Contractor shall comply with the limitations on subcontracting as follows:

(1) For contracts, in accordance with paragraphs (c)(1), (2), (3) and (6) of this clause--

[Contracting Officer check as appropriate.]

X By the end of the base term of the contract and then by the end of each subsequent option period; or

___ By the end of the performance period for each order issued under the contract.

(2) For orders, in accordance with paragraphs (c)(4) and (5) of this clause, by the end of the performance period for the order.

(g) A joint venture agrees that, in the performance of the contract, the applicable percentage specified in paragraph (e) of this clause will be performed by the aggregate of the joint venture participants.

(1) In a joint venture comprised of a small business protege and its mentor approved by the Small Business Administration, the small business protege shall perform at least 40 percent of the work performed by the joint venture. Work performed by the small business protege in the joint venture must be more than administrative functions.

(2) In an 8(a) joint venture, the 8(a) participant(s) shall perform at least 40 percent of the work performed by the joint venture. Work performed by the 8(a) participants in the joint venture must be more than administrative functions.

(End of clause)

52.219-28 POST-AWARD SMALL BUSINESS PROGRAM REREPRESENTATION (SEP 2023)

(a) Definitions. As used in this clause--

Long-term contract means a contract of more than five years in duration, including options. However, the term does not include contracts that exceed five years in duration because the period of performance has been extended for a cumulative period not to exceed six months under the clause at 52.217-8, Option to Extend Services, or other appropriate authority.

Small business concern--

(1) Means a concern, including its affiliates, that is independently owned and operated, not dominant in its field of operation, and qualified as a small business under the criteria in 13 CFR part 121 and the size standard in paragraph (d) of this clause.

(2) Affiliates, as used in this definition, means business concerns, one of whom directly or indirectly controls or has the power to control the others, or a third party or parties control or have the power to control the others. In determining whether affiliation exists, consideration is given to all appropriate factors including common ownership, common management, and contractual relationships. SBA determines affiliation based on the factors set forth at 13 CFR 121.103.

(b) If the Contractor represented that it was any of the small business concerns identified in 19.000(a)(3) prior to award of this contract, the Contractor shall rerepresent its size and socioeconomic status according to paragraph (f) of this clause or, if applicable, paragraph (h) of this clause, upon occurrence of any of the following:

(1) Within 30 days after execution of a novation agreement or within 30 days after modification of the contract to include this clause, if the novation agreement was executed prior to inclusion of this clause in the contract.

(2) Within 30 days after a merger or acquisition that does not require a novation or within 30 days after modification of the contract to include this clause, if the merger or acquisition occurred prior to inclusion of this clause in the contract.

(3) For long-term contracts--

(i) Within 60 to 120 days prior to the end of the fifth year of the contract; and

(ii) Within 60 to 120 days prior to the date specified in the contract for exercising any option thereafter.

(c) If the Contractor represented that it was any of the small business concerns identified in 19.000(a)(3) prior to award of this contract, the Contractor shall rerepresent its size and socioeconomic status according to paragraph (f) of this clause or, if applicable, paragraph (h) of this clause, when the Contracting Officer explicitly requires it for an order issued under a multiple-award contract.

(d) The Contractor shall rerepresent its size status in accordance with the size standard in effect at the time of this rerepresentation that corresponds to the North American Industry Classification System (NAICS) code(s) assigned to this contract. The small business size standard corresponding to this NAICS code(s) can be found at https://www.sba.gov/document/support--table-size-standards.

(e) The small business size standard for a Contractor providing an end item that it does not manufacture, process, or produce itself, for a contract other than a construction or service contract, is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519, if the acquisition--

(1) Was set aside for small business and has a value above the simplified acquisition threshold;

(2) Used the HUBZone price evaluation preference regardless of dollar value, unless the Contractor waived the price evaluation preference; or

(3) Was an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

(f) Except as provided in paragraph (h) of this clause, the Contractor shall make the representation(s) required by paragraph (b) and (c) of this clause by validating or updating all its representations in the Representations and Certifications section of the System for Award Management (SAM) and its other data in SAM, as necessary, to ensure that they reflect the Contractor's current status. The Contractor shall notify the contracting office in writing within the timeframes specified in paragraph (b) of this clause, or with its offer for an order (see paragraph (c) of this clause), that the data have been validated or updated, and provide the date of the validation or update.

(g) If the Contractor represented that it was other than a small business concern prior to award of this contract, the Contractor may, but is not required to, take the actions required by paragraphs (f) or (h) of this clause.

(h) If the Contractor does not have representations and certifications in SAM, or does not have a representation in SAM for the NAICS code applicable to this contract, the Contractor is required to complete the following rerepresentation and submit it to the contracting office, along with the contract number and the date on which the rerepresentation was completed:

(1) The Contractor represents that it [ ] is, [ ] is not a small business concern under NAICS Code assigned to contract number .

(2) [Complete only if the Contractor represented itself as a small business concern in paragraph (h)(1) of this clause.] The Contractor represents that it [ ] is, [ ] is not, a small disadvantaged business concern as defined in 13 CFR 124.1001.

(3) [Complete only if the Contractor represented itself as a small business concern in paragraph (h)(1) of this clause.] The Contractor represents that it [ ] is, [ ] is not a women-owned small business concern.

(4) Women-owned small business (WOSB) joint venture eligible under the WOSB Program. The Contractor represents that it [ ] is, [ ] is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [The Contractor shall enter the name and unique entity identifier of each party to the joint venture: .]

(5) Economically disadvantaged women-owned small business (EDWOSB) joint venture. The Contractor represents that it [ ] is, [ ] is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [The Contractor shall enter the name and unique entity identifier of each party to the joint venture: .]

(6) [Complete only if the Contractor represented itself as a small business concern in paragraph (h)(1) of this clause.] The Contractor represents that it [ ] is, [ ] is not a veteran-owned small business concern.

(7) [Complete only if the Contractor represented itself as a veteran-owned small business concern in paragraph (h)(6) of this clause.] The Contractor represents that it [ ] is, [ ] is not a service-disabled veteran-owned small business concern.

(8) [Complete only if the Contractor represented itself as a small business concern in paragraph (h)(1) of this clause.] The Contractor represents that--

(i) It [ ] is, [ ] is not a HUBZone small business concern listed, on the date of this representation, on the List of Qualified HUBZone Small Business Concerns maintained by the Small Business Administration, and no material changes in ownership and control, principal office, or HUBZone employee percentage have occurred since it was certified in accordance with 13 CFR part 126; and

(ii) It [ ] is, [ ] is not a HUBZone joint venture that complies with the requirements of 13 CFR part 126, and the representation in paragraph (h)(8)(i) of this clause is accurate for each HUBZone small business concern participating in the HUBZone joint venture. [The Contractor shall enter the names of each of the HUBZone small business concerns participating in the HUBZone joint venture: .] Each HUBZone small business concern participating in the HUBZone joint venture shall submit a separate signed copy of the HUBZone representation.

[Contractor to sign and date and insert authorized signer's name and title.]

(End of clause)

52.225-12 NOTICE OF BUY AMERICAN REQUIREMENT-- CONSTRUCTION MATERIALS UNDER TRADE AGREEMENTS (MAY 2014)

(a) Definitions. “Commercially available off-the-shelf (COTS) item,” “construction material,” “designated country construction material,” “domestic construction material,” and “foreign construction material,” as used in this provision, are defined in the clause of this solicitation entitled “Buy American -- Construction Materials Under Trade Agreements” (Federal Acquisition Regulation (FAR) clause 52.225-11).

(b) Requests for determination of inapplicability. An offeror requesting a determination regarding the inapplicability of the Buy American statute should submit the request to the Contracting Officer in time to allow a determination before submission of offers. The offeror shall include the information and applicable supporting data required by paragraphs (c) and (d) of FAR clause 52.225-11 in the request. If an offeror has not requested a determination regarding the inapplicability of the Buy American statute before submitting its offer, or has not received a response to a previous request, the offeror shall include the information and supporting data in the offer.

(c) Evaluation of offers. (1) The Government will evaluate an offer requesting exception to the requirements of the Buy American statute, based on claimed unreasonable cost of domestic construction materials, by adding to the offered price the appropriate percentage of the cost of such foreign construction material, as specified in paragraph (b)(4)(i) of FAR clause 52.225-11.

(2) If evaluation results in a tie between an offeror that requested the substitution of foreign construction material based on unreasonable cost and an offeror that did not request an exception, the Contracting Officer will award to the offeror that did not request an exception based on unreasonable cost.

(d) Alternate offers. (1) When an offer includes foreign construction material, other than designated country construction material, that is not listed by the Government in this solicitation in paragraph (b)(3) of FAR clause 52.225-11, the offeror also may submit an alternate offer based on use of equivalent domestic or designated country construction material.

(2) If an alternate offer is submitted, the offeror shall submit a separate Standard Form 1442 for the alternate offer, and a separate price comparison table prepared in accordance with paragraphs (c) and (d) of FAR clause 52.225-11 for the offer that is based on the use of any foreign construction material for which the Government has not yet determined an exception applies.

(3) If the Government determines that a particular exception requested in accordance with paragraph (c) of FAR clause 52.225-11 does not apply, the Government will evaluate only those offers based on use of the equivalent domestic or designated country construction material, and the offeror shall be required to furnish such domestic or designated country construction material. An offer based on use of the foreign construction material for which an exception was requested-- (i) Will be rejected as nonresponsive if this acquisition is conducted by sealed bidding; or

(ii) May be accepted if revised during negotiations.

(End of provision)

52.228-1 BID GUARANTEE (SEP 1996)

(a) Failure to furnish a bid guarantee in the proper form and amount, by the time set for opening of bids, may be cause for rejection of the bid.

(b) The bidder shall furnish a bid guarantee in the form of a firm commitment, e.g., bid bond supported by good and sufficient surety or sureties acceptable to the Government, postal money order, certified check, cashier's check, irrevocable letter of credit, or, under Treasury Department regulations, certain bonds or notes of the United States. The Contracting Officer will return bid guarantees, other than bid bonds, (1) to unsuccessful bidders as soon as practicable after the opening of bids, and (2) to the successful bidder upon execution of contractual documents and bonds (including any necessary coinsurance or reinsurance agreements), as required by the bid as accepted.-

(c) The amount of the bid guarantee shall be twenty (20) percent of the bid price or $3,000,000, whichever is less.-

(d) If the successful bidder, upon acceptance of its bid by the Government within the period specified for acceptance, fails to execute all contractual documents or furnish executed bond(s) within 10 days after receipt of the forms by the bidder, the Contracting Officer may terminate the contract for default.-

(e) In the event the contract is terminated for default, the bidder is liable for any cost of acquiring the work that exceeds the amount of its bid, and the bid guarantee is available to offset the difference.

(End of provision)

52.228-14 IRREVOCABLE LETTER OF CREDIT (NOV 2014)

(a) “Irrevocable letter of credit” (ILC), as used in this clause, means a written commitment by a federally insured financial institution to pay all or part of a stated amount of money, until the expiration date of the letter, upon presentation by the Government (the beneficiary) of a written demand therefor. Neither the financial institution nor the offeror/Contractor can revoke or condition the letter of credit.

(b) If the offeror intends to use an ILC in lieu of a bid bond, or to secure other types of bonds such as performance and payment bonds, the letter of credit and letter of confirmation formats in paragraphs (e) and (f) of this clause shall be used.

(c) The letter of credit shall be irrevocable, shall require presentation of no document other than a written demand and the ILC (including confirming letter, if any), shall be issued/confirmed by an acceptable federally insured financial institution as provided in paragraph (d) of this clause, and--

(1) If used as a bid guarantee, the ILC shall expire no earlier than 60 days after the close of the bid acceptance period;

(2) If used as an alternative to corporate or individual sureties as security for a performance or payment bond, the offeror/Contractor may submit an ILC with an initial expiration date estimated to cover the entire period for which financial security is required or may submit an ILC with an initial expiration date that is a minimum period of one year from the date of issuance. The ILC shall provide that, unless the issuer provides the beneficiary written notice of non-renewal at least 60 days in advance of the current expiration date, the ILC is automatically extended without amendment for one year from the expiration date, or any future expiration date, until the period of required coverage is completed and the Contracting Officer provides the financial institution with a written statement waiving the right to payment. The period of required coverage shall be:

(i) For contracts subject to 40 U.S.C. chapter 31, subchapter III, Bonds, the later of--

(A) One year following the expected date of final payment;

(B) For performance bonds only, until completion of any warranty period; or

(C) For payment bonds only, until resolution of all claims filed against the payment bond during the one-year period following final payment.

(ii) For contracts not subject to the Miller Act, the later of--

(A) 90 days following final payment; or

(B) For performance bonds only, until completion of any warranty period.

(d)(1) Only federally insured financial institutions rated investment grade by a commercial rating service shall issue or confirm the ILC.

(2) Unless the financial institution issuing the ILC had letter of credit business of at least $25 million in the past year, ILCs over $5 million must be confirmed by another acceptable financial institution that had letter of credit business of at least $25 million in the past year.

(3) The Offeror/Contractor shall provide the Contracting Officer a credit rating that indicates the financial institutions have the required credit rating as of the date of issuance of the ILC.

(4) The current rating for a financial institution is available through any of the following rating services registered with the U.S. Securities and Exchange Commission (SEC) as a Nationally Recognized Statistical Rating Organization (NRSRO). NRSRO's can be located at the Web site http://www.sec.gov/answers/nrsro.htm maintained by the SEC.

(e) The following format shall be used by the issuing financial institution to create an ILC:

___
[Issuing Financial Institution's Letterhead or Name and Address]

Issue Date _ ___

IRREVOCABLE LETTER OF CREDIT NO. ___

Account party's name ___ _

Account party's address ___ _

For Solicitation No. ___ _(for reference only)

TO: [___ U.S. Government agency]

[___ U.S. Government agency's address]

1. We hereby establish this irrevocable and transferable Letter of Credit in your favor for one or more drawings up to United States $ ___ . This Letter of Credit is payable at [issuing financial institution's and, if any, confirming financial institution's] office at [___ issuing financial institution's address and, if any, confirming financial institution's address] and expires with our close of business on ___ , or any automatically extended expiration date.

2. We hereby undertake to honor your or the transferee's sight draft(s) drawn on the issuing or, if any, the confirming financial institution, for all or any part of this credit if presented with this Letter of Credit and confirmation, if any, at the office specified in paragraph 1 of this Letter of Credit on or before the expiration date or any automatically extended expiration date.

3. [This paragraph is omitted if used as a bid guarantee, and subsequent paragraphs are renumbered.] It is a condition of this Letter of Credit that it is deemed to be automatically extended without amendment for one year from the expiration date hereof, or any future expiration date, unless at least 60 days prior to any expiration date, we notify you or the transferee by registered mail, or other receipted means of delivery, that we elect not to consider this Letter of Credit renewed for any such additional period. At the time we notify you, we also agree to notify the account party (and confirming financial institution, if any) by the same means of delivery.

4. This Letter of Credit is transferable. Transfers and assignments of proceeds are to be effected without charge to either the beneficiary or the transferee/assignee of proceeds. Such transfer or assignment shall be only at the written direction of the Government (the beneficiary) in a form satisfactory to the issuing financial institution and the confirming financial institution, if any.

5. This Letter of Credit is subject to the Uniform Customs and Practice (UCP) for Documentary Credits, International Chamber of Commerce Publication No. ____ -- (Insert version in effect at the time of ILC issuance, e.g., ``Publication 600, 2006 edition'') and to the extent not inconsistent therewith, to the laws of ____ --[State of confirming financial institution, if any, otherwise State of issuing financial institution].

6. If this credit expires during an interruption of business of this financial institution as described in Article 17 of the UCP, the financial institution specifically agrees to effect payment if this credit is drawn against within 30 days after the resumption of our business.

Sincerely,

___

[___ Issuing financial institution]

(f) The following format shall be used by the financial institution to confirm an ILC:

___ [Confirming Financial Institution's Letterhead or Name and Address]

(Date) ___

Our Letter of Credit Advice Number ___

Beneficiary: ___ [U.S. Government agency]

Issuing Financial Institution: ___

Issuing Financial Institution's LC No.: ___

Gentlemen:

1. We hereby confirm the above indicated Letter of Credit, the original of which is attached, issued by ___ [name of issuing financial institution] for drawings of up to United States dollars ___ _/U.S. $ ___ and expiring with our close of business on ___ [the expiration date], or any automatically extended expiration date.

2. Draft(s) drawn under the Letter of Credit and this Confirmation are payable at our office located at ___ _.

3. We hereby undertake to honor sight draft(s) drawn under and presented with the Letter of Credit and this Confirmation at our offices as specified herein.

4. [This paragraph is omitted if used as a bid guarantee, and subsequent paragraphs are renumbered.] It is a condition of this confirmation that it be deemed automatically extended without amendment for one year from the expiration date hereof, or any automatically extended expiration date, unless:

(a) At least 60 days prior to any such expiration date, we shall notify the Contracting Officer, or the transferee and the issuing financial institution, by registered mail or other receipted means of delivery, that we elect not to consider this confirmation extended for any such additional period; or

(b) The issuing financial institution shall have exercised its right to notify you or the transferee, the account party, and ourselves, of its election not to extend the expiration date of the Letter of Credit.

5. This confirmation is subject to the Uniform Customs and Practice (UCP) for Documentary Credits, International Chamber of Commerce Publication No. ____ -- (Insert version in effect at the time of ILC issuance, e.g., ``Publication 600, 2006 edition'') and to the extent not inconsistent therewith, to the laws of ____ --[State of confirming financial institution].

6. If this confirmation expires during an interruption of business of this financial institution as described in Article 17 of the UCP, we specifically agree to effect payment if this credit is drawn against within 30 days after the resumption of our business.

Sincerely,

___

[Confirming financial institution]

(g) The following format shall be used by the Contracting Officer for a sight draft to draw on the Letter of Credit:

SIGHT DRAFT

___
[City, State]

(Date) ___

[Name and address of financial institution]

Pay to the order of ___ [Beneficiary Agency] ___ the sum of United States ___ This draft is drawn under Irrevocable Letter of Credit No. ___

___ [Beneficiary Agency]

By: ___

(End of clause)

52.233-2 SERVICE OF PROTEST (SEP 2006)

(a) Protests, as defined in section 33.101 of the Federal Acquisition Regulation, that are filed directly with an agency, and copies of any protests that are filed with the Government Accountability Office (GAO), shall be served on the Contracting Officer (addressed as follows) by obtaining written and dated acknowledgment of receipt from

Planning, Design, and Construction (CON30)
Naval Facilities Engineering Command
1314 Harwood Street SE, Building 212
Washington Navy Yard, DC 20374-5018

(b) The copy of any protest shall be received in the office designated above within one day of filing a protest with the GAO.

(End of provision)

52.236-1 PERFORMANCE OF WORK BY THE CONTRACTOR (APR 1984)

The Contractor shall perform on the site, and with its own organization, work equivalent to at least 20 (twenty) percent of the total amount of work to be performed under the contract. This percentage may be reduced by a supplemental agreement to this contract if, during performing the work, the Contractor requests a reduction and the Contracting Officer determines that the reduction would be to the advantage of the Government.

(End of clause)

52.236-27 SITE VISIT (CONSTRUCTION) (FEB 1995)

(a) The clauses at 52.236-2, Differing Site Conditions, and 52.236-3, Site Investigations and Conditions Affecting the Work, will be included in any contract awarded as a result of this solicitation. Accordingly, offerors or quoters are urged and expected to inspect the site where the work will be performed.

(b) TBD Site visits may be arranged during normal duty hours by contacting:
Name:
Address:
Telephone:

(End of provision)

52.236-28 PREPARATION OF PROPOSALS--CONSTRUCTION (OCT 1997)

(a) Proposals must be (1) submitted on the forms furnished by the Government or on copies of those forms, and (2) manually signed. The person signing a proposal must initial each erasure or change appearing on any proposal form.

(b) The proposal form may require offerors to submit proposed prices for one or more items on various bases, including--

(1) Lump sum price;

(2) Alternate prices;

(3) Units of construction; or

(4) Any combination of paragraphs (b)(1) through (b)(3) of this provision.

(c) If the solicitation requires submission of a proposal on all items, failure to do so may result in the proposal being rejected without further consideration. If a proposal on all items is not required, offerors should insert the words “no proposal” in the space provided for any item on which no price is submitted.

(d) Alternate proposals will not be considered unless this solicitation authorizes their submission.

(End of provision)

52.252-1 SOLICITATION PROVISIONS INCORPORATED BY REFERENCE (FEB 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

https://www.acquisition.gov/

(End of provision)

52.252-2 CLAUSES INCORPORATED BY REFERENCE (FEB 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

https://www.acquisition.gov

(End of clause)

52.252-5 AUTHORIZED DEVIATIONS IN PROVISIONS (NOV 2020)

(a) The use in this solicitation of any Federal Acquisition Regulation (48 CFR Chapter 1) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the provision.

(b) The use in this solicitation of any Federal Acquisition Regulation (48 CFR Chapter 1 and 2) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of provision)

52.252-6 AUTHORIZED DEVIATIONS IN CLAUSES (NOV 2020)

(a) The use in this solicitation or contract of any Federal Acquisition Regulation (48 CFR Chapter 1) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the clause.

(b) The use in this solicitation or contract of any FAR or DFARS (48 CFR Chapter 1 and 2) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of clause)

252.204-7007 ALTERNATE A, ANNUAL REPRESENTATIONS AND CERTIFICATIONS (NOV 2023)

Substitute the following paragraphs (b), (d) and (e) for paragraphs (b) and (d) of the provision at FAR 52.204-8:

(b)(1) If the provision at FAR 52.204-7, System for Award Management, is included in this solicitation, paragraph (e) of this provision applies.

(2) If the provision at FAR 52.204-7, System for Award Management, is not included in this solicitation, and the Offeror has an active registration in the System for Award Management (SAM), the Offeror may choose to use paragraph (e) of this provision instead of completing the corresponding individual representations and certifications in the solicitation. The Offeror shall indicate which option applies by checking one of the following boxes:

__ (i) Paragraph (e) applies.

__ (ii) Paragraph (e) does not apply and the Offeror has completed the individual representations and certifications in the solicitation.

(d)(1) The following representations or certifications in the SAM database are applicable to this solicitation as indicated:

(i) 252.204-7016, Covered Defense Telecommunications Equipment or Services--Representation. Applies to all solicitations.

(ii) 252.216-7008, Economic Price Adjustment--Wage Rates or Material Prices Controlled by a Foreign Government. Applies to solicitations for fixed-price supply and service contracts when the contract is to be performed wholly or in part in a foreign country, and a foreign government controls wage rates or material prices and may during contract performance impose a mandatory change in wages or prices of materials.

(iii) 252.225-7042, Authorization to Perform. Applies to all solicitations when performance will be wholly or in part in a foreign country.

(iv) 252.225-7049, Prohibition on Acquisition of Certain Foreign Commercial Satellite Services--Representations. Applies to solicitations for the acquisition of commercial satellite services.

(v) 252.225-7050, Disclosure of Ownership or Control by the Government of a Country that is a State Sponsor of Terrorism. Applies to all solicitations expected to result in contracts of $150,000 or more.

(vi) 252.229-7012, Tax Exemptions (Italy)--Representation. Applies to solicitations when contract performance will be in Italy.

(vii) 252.229-7013, Tax Exemptions (Spain)--Representation. Applies to solicitations when contract performance will be in Spain.

(viii) 252.247-7022, Representation of Extent of Transportation by Sea. Applies to all solicitations except those for direct purchase of ocean transportation services or those with an anticipated value at or below the simplified acquisition threshold.

(2) The following representations or certifications in SAM are applicable to this solicitation as indicated by the Contracting Officer: [Contracting Officer check as appropriate.]

XX (i) 252.209-7002, Disclosure of Ownership or Control by a Foreign Government.

____ (ii) 252.225-7000, Buy American--Balance of Payments Program Certificate.

____ (iii) 252.225-7020, Trade Agreements Certificate.

____ Use with Alternate I.

XX (iv) 252.225-7031, Secondary Arab Boycott of Israel.

____ (v) 252.225-7035, Buy American--Free Trade Agreements--Balance of Payments Program Certificate.

____ Use with Alternate I.

____ Use with Alternate II.

____ Use with Alternate III.

____ Use with Alternate IV.

____ Use with Alternate V.

____ (vi) 252.226-7002, Representation for Demonstration Project for Contractors Employing Persons with Disabilities.

____ (vii) 252.232-7015, Performance-Based Payments--Representation.

(e) The Offeror has completed the annual representations and certifications electronically via the SAM website at https://www.sam.gov. After reviewing the SAM database information, the Offeror verifies by submission of the offer that the representations and certifications currently posted electronically that apply to this solicitation as indicated in FAR 52.204-8(c) and paragraph (d) of this provision have been entered or updated within the last 12 months, are current, accurate, complete, and applicable to this solicitation (including the business size standard applicable to the NAICS code referenced for this solicitation), as of the date of this offer, and are incorporated in this offer by reference (see FAR 4.1201); except for the changes identified below [Offeror to insert changes, identifying change by provision number, title, date_____]. These amended representation(s) and/or certification(s) are also incorporated in this offer and are current, accurate, and complete as of the date of this offer.

FAR/DFARS provision No.	Title	Date	Change

Any changes provided by the Offeror are applicable to this solicitation only, and do not result in an update to the representations and certifications located in the SAM database.

(End of provision)

252.225-7059 PROHIBITION ON CERTAIN PROCUREMENTS FROM THE XINJIANG UYGHUR AUTONOMOUS REGION - REPRESENTATION (JUN 2023)
(a) Definitions. Forced labor and XUAR, as used in this provision, have the meaning given in the 252.225-7060, Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region, clause of this solicitation.
(b) Prohibition. DoD may not knowingly procure any products mined, produced, or manufactured wholly or in part by forced labor from XUAR or from an entity that has used labor from within or transferred from XUAR as part of any forced labor programs, as specified in paragraph (b) of the 252.225-7060, Prohibition on certain procurements from the Xinjiang Uyghur Autonomous Region, clause of this solicitation.
(c) Representation. By submission of its offer, the Offeror represents that it has made a good faith effort to determine that forced labor from XUAR will not be used in the performance of a contract resulting from this solicitation.

(End of provision)

252.232-7006 WIDE AREA WORKFLOW PAYMENT INSTRUCTIONS (JAN 2023)

WAWF INFORMATION WILL BE PROVIDED PER TASK ORDER

(a) Definitions. As used in this clause—

“Department of Defense Activity Address Code (DoDAAC)” is a six position code that uniquely identifies a unit, activity, or organization.

“Document type” means the type of payment request or receiving report available for creation in Wide Area WorkFlow (WAWF).

“Local processing office (LPO)” is the office responsible for payment certification when payment certification is done external to the entitlement system.

“Payment request” and “receiving report” are defined in the clause at 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(b) Electronic invoicing. The WAWF system provides the method to electronically process vendor payment requests and receiving reports, as authorized by Defense Federal Acquisition Regulation Supplement (DFARS) 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(c) WAWF access. To access WAWF, the Contractor shall—

(1) Have a designated electronic business point of contact in the System for Award Management at https://www.sam.gov; and

(2) Be registered to use WAWF at https://wawf.eb.mil/ following the step-by-step procedures for self-registration available at this web site.

(d) WAWF training. The Contractor should follow the training instructions of the WAWF Web-Based Training Course and use the Practice Training Site before submitting payment requests through WAWF. Both can be accessed by selecting the "Web Based Training" link on the WAWF home page at https://wawf.eb.mil/.

(e) WAWF methods of document submission. Document submissions may be via web entry, Electronic Data Interchange, or File Transfer Protocol.

(f) WAWF payment instructions. The Contractor shall use the following information when submitting payment requests and receiving reports in WAWF for this contract or task or delivery order:

(1) Document type. The Contractor shall submit payment requests using the following document type(s):

(i) For cost-type line items, including labor-hour or time-and-materials, submit a cost voucher.

(ii) For fixed price line items—

(A) That require shipment of a deliverable, submit the invoice and receiving report specified by the Contracting Officer.

____

(Contracting Officer: Insert applicable invoice and receiving report document type(s) for fixed price line items that require shipment of a deliverable.)

(B) For services that do not require shipment of a deliverable, submit either the Invoice 2in1, which meets the requirements for the invoice and receiving report, or the applicable invoice and receiving report, as specified by the Contracting Officer.

____

(Contracting Officer: Insert either "Invoice 2in1" or the applicable invoice and receiving report document type(s) for fixed price line items for services.)

(iii) For customary progress payments based on costs incurred, submit a progress payment request.

(iv) For performance based payments, submit a performance based payment request.

(v) For commercial financing, submit a commercial financing request.

(2) Fast Pay requests are only permitted when Federal Acquisition Regulation (FAR) 52.213-1 is included in the contract.

[Note: The Contractor may use a WAWF "combo" document type to create some combinations of invoice and receiving report in one step.]

(3) Document routing. The Contractor shall use the information in the Routing Data Table below only to fill in applicable fields in WAWF when creating payment requests and receiving reports in the system.

Routing Data Table*

Field Name in WAWF	*Data to be entered in WAWF*
Pay Official DoDAAC	____

Issue By DoDAAC	____
Admin DoDAAC**	____
Inspect By DoDAAC	____
Ship To Code	____
Ship From Code	____
Mark For Code	____
Service Approver (DoDAAC)	____
Service Acceptor (DoDAAC)	____
Accept at Other DoDAAC	____
LPO DoDAAC	____
DCAA Auditor DoDAAC	____
Other DoDAAC(s)	____

(*Contracting Officer: Insert applicable DoDAAC information. If multiple ship to/acceptance locations apply, insert "See Schedule" or "Not applicable.")

(**Contracting Officer: If the contract provides for progress payments or performance-based payments, insert the DoDAAC for the contract administration office assigned the functions under FAR 42.302(a)(13).)

(4) Payment request. The Contractor shall ensure a payment request includes documentation appropriate to the type of payment request in accordance with the payment clause, contract financing clause, or Federal Acquisition Regulation 52.216-7, Allowable Cost and Payment, as applicable.

(5) Receiving report. The Contractor shall ensure a receiving report meets the requirements of DFARS Appendix F.

(g) WAWF point of contact.

(1) The Contractor may obtain clarification regarding invoicing in WAWF from the following contracting activity's WAWF point of contact.

____

(Contracting Officer: Insert applicable information or "Not applicable.")

(2) Contact the WAWF helpdesk at 866-618-5988, if assistance is needed.

(End of clause)

252.236-7001 CONTRACT DRAWINGS AND SPECIFICATIONS (AUG 2000)

(a) The Government will provide to the Contractor, without charge, one set of contract drawings and specifications, except publications incorporated into the technical provisions by reference, in electronic or paper media as chosen by the Contracting Officer.

(b) The Contractor shall--

(1) Check all drawings furnished immediately upon receipt;

(2) Compare all drawings and verify the figures before laying out the work;

(3) Promptly notify the Contracting Officer of any discrepancies;

(4) Be responsible for any errors that might have been avoided by complying with this paragraph (b); and

(5) Reproduce and print contract drawings and specifications as needed.

(c) In general--

(1) Large-scale drawings shall govern small-scale drawings; and

(2) The Contractor shall follow figures marked on drawings in preference to scale measurements.

(d) Omissions from the drawings or specifications or the misdescription of details of work that are manifestly necessary to carry out the intent of the drawings and specifications, or that are customarily performed, shall not relieve the Contractor from performing such omitted or misdescribed details of the work. The Contractor shall perform such details as if fully and correctly set forth and described in the drawings and specifications.

(e) The work shall conform to the specifications and the contract drawings identified on the following index of drawings:

All specifications and drawing are included in this Request for Proposal (RFP) and will be included in subsequent task orders.
(End of clause)

Section 00 73 00 - Supplementary Conditions

UTILITIES FOR CONSTRUCTION
The contractor shall be responsible for obtaining, either from available Government sources or local utility companies, all utilities required for construction and testing. The Contractor shall provide these utilities at his expense, paid for at the current utility rate delivered to the job site. The Contractor shall provide and maintain all temporary utility connections and distribution lines, and all meters required and to measure the amount of each utility used.
(End)

PAYMENT INSTRUCTIONS
DFARS PGI Section 204.7108, Payment Instructions has been updated and provides a standard set of Payment Instructions, in the table format, that define how payments should be made based on the payment request type and the supply or service being acquired. The following link provides the table:
https://www.acq.osd.mil/dpap/dars/pgi_htm/current/PGI204_71.htm#payment_instructions

ADDITIONAL TERMS AND CONDITION
AUTHORITY
In accordance with FAR 1.602-1, only Contracting officers have the authority to enter into, administer, or terminate contracts and make related determinations and findings.

NOTICE OF BONDING REQUIREMENTS
Within 10 days after receipt of award the bidder/Offeror to whom the award is made shall furnish the bonds required by FAR Claus 52.228-15 Performance and Payment Bonds- Construction. Bidder/Offerors are hereby notified that the contract time for purpose of fixing the completion date, default, and liquidated damages will be as stated in FAR Clause 52.211-10 Commencement, Prosecution, and Completion of Work, regardless of when performance and payment bonds or deposits in lieu of surety are executed.
(End)

Section 01 00 00 - General Requirements

TASK ORDER GUIDANCE
TASK ORDER GUIDANCE

I. TASK ORDER ISSUANCE PROCEDURES

A. GENERAL

1. When the Government requires work under the contract, a Task Order Request for Proposal (RFP) will be issued. Task Order RFPs will normally be issued electronically by email but may be placed via mail, telephone, facsimile or other electronic means.

2. Task Order RFPs will clearly define the specific services to be performed or the performance desired and the specific completion date or performance period. Task Order projects may include Design-Build or Design-Bid-Build projects; may be non-complex performance oriented tasks requiring minimal design, may be complex construction requiring design development for design-build construction, or a combination thereof. Projects may vary in size and complexity.

3. The Government intends to conduct site visits, when appropriate, for each Task Order RFP. The Task Order RFP will specify the time(s), date(s), location(s), base access requirements, and any additional Personnel Protection Equipment (PPE) requirements. The Government does not intend to provide any transportation for any site visit. Unless otherwise specified, Contractors should be prepared to wear Personnel Protection Equipment (PPE) such as Hard Hat, Safety Shoes and Reflective Vest. It is the sole responsibility of each attendee to wear any Personal Protection Equipment (PPE) in accordance with the latest EM 385-1-1 (Safety and Health Requirements Manual) appropriate for the site visit. The Government will not provide any PPE for persons attending the site visit. If proper PPE is not used, the individual may not be allowed to participate in the site visit to the full extent.

4. The Government expects MACC Contractors to submit Pre-proposal Inquiries (PPI) to clarify information and answer any questions they have concerning the Task Order RFP in accordance with Task Order RFP instructions. The Government expects MACC Contractors to ask follow-up PPIs if they do not understand the Government response or require additional information. The Government will respond to PPIs to the maximum extent possible, however, PPIs considered "late" per the task order RFP may not receive a response.

5. FAR Clause 52.211-10, Commencement, Prosecution, and Completion of Work, will be incorporated into each Task Order identifying the construction schedule. The Government reserves the right to negotiate a Task Order’s performance period if determined to be in the best interest of the Government.

6. Bid Guarantees and Payment Bonds, if required, will be specified on each Task Order RFP and any resultant Task Order.

7. The Liquidated Damages rate(s) will be specified in each Task Order RFP and any resultant Task Order.

8. Minimum Guarantee: The Contracting Officer will issue a unilateral no-cost cancellation for the minimum guarantee Task Order if/when the MACC Contractor receives a Task Order that is equal to or exceeds the amount of the minimum guarantee. Any MACC Contractor that has not received a Task Order that is equal to or exceeds the amount of the minimum guarantee will submit an invoice at the conclusion of the contract, or sooner if directed by the Contracting Officer, in order to receive payment for the minimum guarantee.

B. PROPOSAL SUBMITTAL

1. The intent of this contract is that all MACC Contractors participate in pre-proposal conferences and site-visits and submit proposals on each task order. Contract awardees will be expected to submit a proposal for all Task Order Requests for Proposal (RFP) received from the Government. However, in the event a MACC awardee is unable to submit a proposal on a particular RFP, the contractor is required to notify, in writing, the Contracting Officer who

issued the RFP and the ACO for the basic contract within five (5) working days from receipt of the RFP. A MACC awardee can only elect to withdraw from submitting a proposal on three (3) task order RFPs during the course of each year of the contract (base plus 2 options). Additional withdrawal requests, in excess of three (3) per year, may result in the Government choosing not to exercise remaining option terms.
2. A competitive Task Order Solicitation may require a single lump sum proposal or may require, but is not limited to a total price comprised of lump sum prices for multiple Contract Line Item Numbers (CLINs), one or more CLINs with multiple Sub-Line Item Numbers (SLINs), unit prices for a specified quantity that results in an extended price, or any combination thereof. As part of the proposal submission requirements or as deemed necessary by the Contracting Officer, the MACC Contractor may be requested to provide the quotations/proposals the MACC Contractor received in support of material, equipment, and/or any subcontractor costs.

3. The costs for preparation and submission of proposals in response to a Task Order RFP shall be the responsibility of the Contractor and are not reimbursable.

C. COMPETITION
1. Fair Opportunity: Competition for issuance of Task Orders is limited to those awardees under this MACC contract.

2. The Government intends to solicit each Task Order RFP on a competitive basis and award each Task Order to the Offeror who represents the best value to the Government considering criteria specified in the Task Order RFP.

3. The Government reserves the right to award Task Orders without competition in accordance with FAR 16.505(b)(2) when determined to be in the Government's best interests by the Contracting Officer.

D. BASIS FOR TASK ORDER AWARD AND EVALUATION
1. Task Orders may be awarded on the basis of Best Value, determinations will be made by tradeoffs or LPTA including lowest price.

2. The basis for award will be stated in the Task Order RFP. At a minimum, Price shall be evaluated on all Task Order RFPs. In addition, the Contracting Officer may consider past performance on earlier orders under the contract, including quality, timeliness, and cost control; and potential impact on other task orders placed with the Contractor. Other factors may be considered as specified in the Task Order RFP.

3. In case of a discrepancy between the CLIN(s) price and the total price, the CLIN(s) price will be presumed to be correct and the total price will be recalculated accordingly; in case of a discrepancy between the SLIN(s) prices and the price for the CLIN, the SLIN(s) price will be presumed to be correct and the CLIN price will be recalculated accordingly; in case of a discrepancy between a unit price and an extended price, the unit price will be presumed to be correct and the extended price will be recalculated accordingly; subject, however, to correction to the same extent and in the same manner as any other mistake.

4. The Contracting Officer reserves the right to request a detailed cost or price breakdown of labor, materials, equipment, overheads, and profit at any time including with the submission of initial offers.

5. The Government intends to evaluate and award Task Orders without discussions (except clarifications as described in FAR 15.306(a)), unless the Contracting Officer later determines them to be necessary. The Government reserves the right to conduct discussions if the Contracting Officer later determines them to be necessary. In addition, if the Contracting Officer determines that the number of proposals that would otherwise be in the competitive range exceeds the number at which an efficient competition can be conducted, the Contracting Officer may limit the number of proposals in the competitive range to the greatest number that will permit an efficient competition among the most highly rated proposals.

E. TASK ORDER PROCEDURES
1. The Contractor shall not perform, deliver, or otherwise incur costs until they receive a Task Order issued by the Contracting Officer.

2. The Government intends to issue only written Task Orders on DD Form 1155 (Order for Supplies or Services). Awarded Task Orders will be assigned a system-generated number consisting of 13 digits. However, the Government does reserve the right to issue Task Orders orally in extenuating circumstances. The Contracting Officer is the only individual authorized to issue oral Task Orders. All orally issued Task Orders will be sent to the Contractor by email from the Contracting Officer and/or written letter signed by the Contracting Officer. All orally issued Task Orders will be confirmed by issuance of a written Task Order as soon as practical after issuance of the oral Task order.

3. In accordance with FAR 16.505(a)(10), no protest under Subpart 33.1 is authorized in connection with the issuance or proposed issuance of an order under a Task Order contract except for a protest on the grounds that the order increases the scope, period, or maximum value of the contract; or a protest of an order valued in excess of $25 million. Protests of orders in excess of $25 million may only be filed with the Government Accountability Office, in accordance with the procedures at FAR 33.104.

F. TASK ORDER ADMINISTRATION

1. The Administrative Contracting Office (ACO) shall be responsible for issuing and awarding individual Task Orders. These individuals may include Contracting Officers located, or responsible for that specific location, where the work is to be accomplished. These individuals shall possess the authority to act on behalf of the Government with respect to the specific Task Order. All day-to-day construction contract administration will be the responsibility of the designated ACO.

2. All Task Orders are subject to the terms and conditions of the base MACC contract. In the event of conflict between a Task Order and this contract, the Task Order will take precedence, except as otherwise noted in the contract documents. The Government will incorporate additional provisions, clauses, and instructions, as appropriate, into individual Task Order RFPs and resultant Task Orders.

3. Modifications to Task Orders will be issued on a Standard Form (SF) 30 signed by the Contracting Officer. The Contracting Officer is the only individual authorized to change the terms and conditions of the Task Order.

G. CONTRACTOR PERFORMANCE INFORMATION

Contractor's performance will be evaluated using the respective contractor performance evaluation report entry system located on the website http://www.cpars.gov/. Prior to commencement of work the contractor is required to provide the government with the name, phone number and email address of the "Contractor's Representative" that will be responsible for receipt and review of draft performance evaluations prepared by the government in the appropriate system. It is the contractor's responsibility to keep this contact information current.

GENERAL REQUIREMENTS FOR

DEMONSTRATION PROJECT
NAVFAC Solicitation No.: N4008024R2401
NAVFAC Specification Work Order No.: 1716254
NAVFAC Drawings Nos.: 06/28/2023

Title: E-USU-76 Roof Garden. It is to provide a design for a roof garden / patio design at the second floor of bldg. 76E.

Location of the Work: Naval Support Activity (NSA) Bethesda in Bethesda, Maryland

Description of Work: The project consists of removing existing roof, add a topping slope, add access from the interior and put a green roof on top. It is also to provide a design for a roof garden / patio design at the second floor of bldg. 76E. Design includes architectural layout following option A of study performed by MTFA on 2022 including but not limiting to green area, architectural gravel, seats, Arbor, tables , chairs, architectural lighting approved by USUHS. Also included is Structural strengthening, Landscape Architecture, Mechanical, Electrical and Plumbing to accommodate installation of the roof garden and support function of the new layout and incidental related work.

NAICS Code: 238160 Roofing Contractors
Proposal due date: Submit in accordance with Box 13 Instructions above.

Estimated Budget Amount or Price Range: In accordance with FARS 36.204 Disclosure of the Magnitude of Construction Projects, the estimated price range for this project is between $1,000,000 and $5,000,000.

Time for Completion: In accordance with FAR 52.211-10 Commencement, Prosecution, and Completion of Work, the Government desires completion of construction within 180 calendar days after award (includes 15 calendar days for submission and approval of bonds and insurance).

Wage Determination: Department of Labor (DoL) General Decision Number as incorporated into the RFP applies to this work. Should this wage determination be modified by DoL prior to award, the most current wage determination will be incorporated at the time of award.

Liquidated Damages: In accordance with FAR 52.211-12 Liquidated Damages – Construction, liquidated damages, at the time of award, will be based upon the liquidated damages for the base price, plus any option or combination of options exercised. The demonstration project liquidated damages are $500/calendar day of delay. If an option(s) is exercised within the timeframe allowed after award, the liquidated damages will be increased based upon the liquidated damages for that option.

Utilities: Utilities: In accordance with FAR 52.236-14 Availability and Use of Utility Services, the Government shall make all reasonably required amounts of utilities available to the Contractor from existing outlets and supplies, as specified in the contract. Unless otherwise provided in the contract, the amount of each utility service consumed shall be charged to or paid for by the Contractor at prevailing rates charged to the Government or, where the utility is produced by the Government, at reasonable rates determined by the Contracting Officer. The Contractor shall carefully conserve any utilities furnished without charge.

Record Shop Drawings: In accordance with FAR 52.236-21 Specifications and Drawings for Construction, record shop drawings are required. Reproducible copies of these record drawings are also required.

Bond Requirements: In accordance with FAR 52.228-1 Bid Guarantee, each offeror shall submit with its offer a guarantee bond (Standard Form 24) in a penal sum equal to at least 20 percent of the offer price or $3,000,000, whichever is less. Pursuant to FAR 52.232-18, Availability of Funds, the Government's obligation under this solicitation, or any task order or contract that might result from the solicitation is entirely subject to, and contingent upon, the availability of appropriated funds. Should the Government be unable to award the demonstration project, the Government guarantees an award in the amount of $5,000.00 to each successful offeror upon award of the Multiple Award Construction Contracts. This minimum guarantee is over the full term of the contract, including option years. No legal liability on the part of the Government shall arise until funds are made available to the Contracting Officer and a task order or contract is awarded by the Contracting Officer. Any offeror proposing on this solicitation does so at its own cost and with the full knowledge that a task order for the demonstration project, might not result from this solicitation.

Site Visit: Site visit details will be provided in subsequent amendment.

WAGE DETERMINATION
"General Decision Number: MD20240053 08/16/2024

Superseded General Decision Number: MD20230053

State: Maryland

Construction Type: Building

County: Montgomery County in Maryland.

BUILDING CONSTRUCTION PROJECTS (does not include single family homes or apartments up to and including 4 stories).

Note: Contracts subject to the Davis-Bacon Act are generally required to pay at least the applicable minimum wage rate required under Executive Order 14026 or Executive Order 13658. Please note that these Executive Orders apply to covered contracts entered into by the federal government that are subject to the Davis-Bacon Act itself, but do not apply to contracts subject only to the Davis-Bacon Related Acts, including those set forth at 29 CFR 5.1(a)(1).

If the contract is entered into on or after January 30, 2022, or the contract is renewed or extended (e.g., an option is exercised) on or after January 30, 2022:	� Executive Order 14026 generally applies to the contract. � The contractor must pay all covered workers at least $17.20 per hour (or the applicable wage rate listed on this wage determination, if it is higher) for all hours spent performing on the contract in 2024.
If the contract was awarded on or between January 1, 2015 and January 29, 2022, and the contract is not renewed or extended on or after January 30, 2022:	� Executive Order 13658 generally applies to the contract. � The contractor must pay all covered workers at least $12.90 per hour (or the applicable wage rate listed on this wage determination, if it is higher) for all hours performing on that contract in 2024.

The applicable Executive Order minimum wage rate will be adjusted annually. If this contract is covered by one of the Executive Orders and a classification considered necessary for performance of work on the contract does not appear on this wage determination, the contractor must still submit a conformance request.

Additional information on contractor requirements and worker protections under the Executive Orders is available at http://www.dol.gov/whd/govcontracts.

Modification Number	Publication Date
0	01/05/2024
1	01/12/2024
2	02/02/2024
3	02/23/2024
4	04/05/2024
5	05/10/2024
6	05/17/2024
7	06/14/2024
8	08/02/2024
9	08/09/2024
10	08/16/2024

ASBE0024-004 10/01/2023

	Rates	Fringes
INSULATOR - MECHANICAL (Duct, Pipe & Mechanical System Insulation)...............	$ 40.02	19.67

BRDC0001-003 04/28/2024

	Rates	Fringes
STONE FINISHER...................	$ 28.09	12.29

BRDC0001-004 04/28/2024

	Rates	Fringes
TILE FINISHER....................	$ 28.09	12.29

BRDC0001-006 04/28/2024

	Rates	Fringes
TILE SETTER......................	$ 33.41	13.94

BRDC0001-007 04/28/2024

	Rates	Fringes
MASON - STONE....................	$ 44.30	20.92

CARP0197-018 05/01/2024

	Rates	Fringes
CARPENTER........................	$ 34.41	14.33

CARP0251-006 05/01/2024

```
                       Rates          Fringes

SOFT FLOOR LAYER (Includes
Carpet, Vinyl and Resilient).....$ 34.12       14.64
----------------------------------------------------------------
 CARP0474-001 05/01/2022

                       Rates          Fringes

PILEDRIVER PERSON................$ 34.62       13.45
----------------------------------------------------------------
 ELEC0026-002 06/05/2023

                       Rates          Fringes

ELECTRICIAN......................$ 53.00       21.35
----------------------------------------------------------------
 ELEV0010-002 01/01/2024

                       Rates          Fringes

ELEVATOR MECHANIC................$ 54.77     37.885+a+b

 a. PAID HOLIDAYS: New Year's Day, Memorial Day, Independence
 Day, Labor Day, Veterans' Day, Thanksgiving Day, Christmas
 Day and the Friday after Thanksgiving.

 b. VACATIONS: Employer contributes 8% of basic hourly rate
 for 5 years or more of service; 6% of basic hourly rate for
 6 months to 5 years of service as vacation pay credit.

----------------------------------------------------------------
 ENGI0037-001 04/01/2024

                       Rates          Fringes

POWER EQUIPMENT OPERATOR
    Bobcat/Skid Steer/Skid
    Loader......................$ 32.23       14.50
    Bulldozer...................$ 34.18       14.50
    Crane.......................$ 38.74       14.50
    Loader......................$ 34.18       14.50
    Paver (Asphalt, Aggregate
    and Concrete)...............$ 34.18       14.50
    Roller......................$ 34.18       14.50
----------------------------------------------------------------
 IRON0568-001 05/01/2024

                       Rates          Fringes

IRONWORKER, REINFORCING..........$ 30.69       24.15
----------------------------------------------------------------
 LABO0616-001 05/01/2023
```

Rates Fringes

LABORER (Pipelayer).............$ 23.24 22.10

LABO0710-001 04/01/2024

Rates Fringes

LABORER (Mason Tender - Brick)...$ 22.17 6.73

PAIN0051-002 06/01/2023

Rates Fringes

GLAZIER..........................$ 34.76 13.85

PAIN0051-003 06/01/2023

Rates Fringes

DRYWALL FINISHER/TAPER...........$ 27.46 11.56

PAIN0051-006 06/01/2023

Rates Fringes

PAINTER..........................$ 27.46 11.56

PLUM0005-002 08/01/2024

Rates Fringes

PLUMBER..........................$ 51.25 22.46

PLUM0602-001 08/01/2024

Rates Fringes

PIPEFITTER (Includes HVAC
Pipe and Unit Installation)......$ 52.27 23.79

ROOF0030-003 07/01/2024

Rates Fringes

ROOFER...........................$ 34.76 14.91

SFMD0669-002 04/01/2024

Rates Fringes

SPRINKLER FITTER.................$ 42.32 25.80

SHEE0100-005 11/01/2021

Rates Fringes

SHEET METAL WORKER (HVAC Duct
Installation Only)...............$ 44.37 21.33
----
* TEAM0639-002 06/01/2024

Rates Fringes

TRUCK DRIVER (DUMP TRUCK)........$ 30.50 6.80
----
* UAVG-MD-0001 01/01/2024

Rates Fringes

IRONWORKER, ORNAMENTAL...........$ 31.51 24.53
----
* UAVG-MD-0002 01/01/2024

Rates Fringes

IRONWORKER, STRUCTURAL...........$ 31.41 24.46
----
* UAVG-MD-0003 06/12/2023

Rates Fringes

SHEET METAL WORKER...............$ 33.59 23.15

SUMD2023-010 05/30/2023

Rates Fringes

BRICKLAYER.......................$ 29.32 10.51

CEMENT MASON/CONCRETE FINISHER...$ 27.19 6.39

LABORER: Common or General......$ 19.32 5.46

LABORER: Mason Tender -
Cement/Concrete..................$ 19.56 5.77

OPERATOR:
Backhoe/Excavator/Trackhoe.......$ 28.36 11.83

OPERATOR: Forklift.............$ 23.72 4.47

WELDERS - Receive rate prescribed for craft performing
operation to which welding is incidental.

==

Note: Executive Order (EO) 13706, Establishing Paid Sick Leave
for Federal Contractors applies to all contracts subject to the

Davis-Bacon Act for which the contract is awarded (and any solicitation was issued) on or after January 1, 2017. If this contract is covered by the EO, the contractor must provide employees with 1 hour of paid sick leave for every 30 hours they work, up to 56 hours of paid sick leave each year. Employees must be permitted to use paid sick leave for their own illness, injury or other health-related needs, including preventive care; to assist a family member (or person who is like family to the employee) who is ill, injured, or has other health-related needs, including preventive care; or for reasons resulting from, or to assist a family member (or person who is like family to the employee) who is a victim of, domestic violence, sexual assault, or stalking. Additional information on contractor requirements and worker protections under the EO is available at https://www.dol.gov/agencies/whd/government-contracts.

Unlisted classifications needed for work not included within the scope of the classifications listed may be added after award only as provided in the labor standards contract clauses (29CFR 5.5 (a) (1) (iii)).

The body of each wage determination lists the classification and wage rates that have been found to be prevailing for the cited type(s) of construction in the area covered by the wage determination. The classifications are listed in alphabetical order of ""identifiers"" that indicate whether the particular rate is a union rate (current union negotiated rate for local), a survey rate (weighted average rate) or a union average rate (weighted union average rate).

Union Rate Identifiers

A four letter classification abbreviation identifier enclosed in dotted lines beginning with characters other than ""SU"" or ""UAVG"" denotes that the union classification and rate were prevailing for that classification in the survey. Example: PLUM0198-005 07/01/2014. PLUM is an abbreviation identifier of the union which prevailed in the survey for this classification, which in this example would be Plumbers. 0198 indicates the local union number or district council number where applicable, i.e., Plumbers Local 0198. The next number, 005 in the example, is an internal number used in processing the wage determination. 07/01/2014 is the effective date of the most current negotiated rate, which in this example is July 1, 2014.

Union prevailing wage rates are updated to reflect all rate changes in the collective bargaining agreement (CBA) governing this classification and rate.

Survey Rate Identifiers

Classifications listed under the ""SU"" identifier indicate that no one rate prevailed for this classification in the survey and the published rate is derived by computing a weighted average rate based on all the rates reported in the survey for that classification. As this weighted average rate includes all rates reported in the survey, it may include both union and non-union rates. Example: SULA2012-007 5/13/2014. SU indicates the rates are survey rates based on a weighted average calculation of rates and are not majority rates. LA indicates the State of Louisiana. 2012 is the year of survey on which these classifications and rates are based. The next number, 007 in the example, is an internal number used in producing the wage determination. 5/13/2014 indicates the survey completion date for the classifications and rates under that identifier.

Survey wage rates are not updated and remain in effect until a new survey is conducted.

Union Average Rate Identifiers

Classification(s) listed under the UAVG identifier indicate that no single majority rate prevailed for those classifications; however, 100% of the data reported for the classifications was union data. EXAMPLE: UAVG-OH-0010 08/29/2014. UAVG indicates that the rate is a weighted union average rate. OH indicates the state. The next number, 0010 in the example, is an internal number used in producing the wage determination. 08/29/2014 indicates the survey completion date for the classifications and rates under that identifier.

A UAVG rate will be updated once a year, usually in January of each year, to reflect a weighted average of the current negotiated/CBA rate of the union locals from which the rate is based.

State Adopted Rate Identifiers

Classifications listed under the ""SA"" identifier indicate that the prevailing wage rate set by a state (or local) government was adopted under 29 C.F.R �1.3(g)-(h). Example: SAME2023-007 01/03/2024. SA reflects that the rates are state adopted. ME refers to the State of Maine. 2023 is the year during which the state completed the survey on which the listed classifications and rates are based. The next number, 007 in the example, is an internal number used in producing the wage determination. 01/03/2024 reflects the date on which the classifications and rates under the ?SA? identifier took effect under state law in the state from which the rates were adopted.

WAGE DETERMINATION APPEALS PROCESS

1.) Has there been an initial decision in the matter? This can be:

* an existing published wage determination
* a survey underlying a wage determination
* a Wage and Hour Division letter setting forth a position on a wage determination matter
* a conformance (additional classification and rate) ruling

On survey related matters, initial contact, including requests for summaries of surveys, should be with the Wage and Hour National Office because National Office has responsibility for the Davis-Bacon survey program. If the response from this initial contact is not satisfactory, then the process described in 2.) and 3.) should be followed.

With regard to any other matter not yet ripe for the formal process described here, initial contact should be with the Branch of Construction Wage Determinations. Write to:

Branch of Construction Wage Determinations
Wage and Hour Division
U.S. Department of Labor
200 Constitution Avenue, N.W.
Washington, DC 20210

2.) If the answer to the question in 1.) is yes, then an interested party (those affected by the action) can request review and reconsideration from the Wage and Hour Administrator (See 29 CFR Part 1.8 and 29 CFR Part 7). Write to:

Wage and Hour Administrator
U.S. Department of Labor
200 Constitution Avenue, N.W.
Washington, DC 20210

The request should be accompanied by a full statement of the interested party's position and by any information (wage payment data, project description, area practice material, etc.) that the requestor considers relevant to the issue.

3.) If the decision of the Administrator is not favorable, an interested party may appeal directly to the Administrative Review Board (formerly the Wage Appeals Board). Write to:

Administrative Review Board
U.S. Department of Labor
200 Constitution Avenue, N.W.
Washington, DC 20210

4.) All decisions by the Administrative Review Board are final.

==

END OF GENERAL DECISION"